Professional Ethics & Professional Accounting System

Topper Answers

Every topic of the syllabus ranked by how often it was asked in 10 university papers (2013–2022), with a topper-style answer for each — written so that one answer serves a 6-mark short note and a 16-mark essay.

- ✔ Topics ranked by repetition and by Part A / Part B
- ✔ Full topper answer with headings, sections and rules
- ✔ Diagrams, flow charts and comparison tables
- ✔ Memory tricks for every topic
- ✔ Quick-scan box: the whole answer in five bold lines
- ✔ Every case told as a story — facts, holding, lesson
- ✔ Real-world examples from Telangana courts
- ✔ Numbers-to-remember sheet at the end

10	90	14	35+
papers analysed	questions	ranked topics	case stories

Spoorthi Oum

Ranking is as per previous year question paper analysis — a look back, not a prediction.

2026 edition

The ranking — what the examiners keep asking

10 Osmania papers · Aug/Sep 2013 to Nov 2022 · 50 short notes + 40 essays · as per previous year question paper analysis

2 hours · 50 marks
Written paper. The other 50 marks: record (30) + viva voce (20).

Part A — 3 × 6 = 18
Any 3 of 5 short notes.

Part B — 2 × 16 = 32
Any 2 of 4 essays.

The constant pair
Every paper had a misconduct / disciplinary question; 8 of 10 had an accounting essay.

#	Topic	Unit	Papers that asked it	Questions	Asked mostly as	Priority	Page
1	**Professional misconduct**	III	10/10	A ×6 · B ×4	Both	★★★	4
2	**Disciplinary committees and disciplinary proceedings**	III	9/10	A ×3 · B ×8	Essay	★★★	7
3	**Accountancy for lawyers**	IV	8/10	A ×3 · B ×8	Essay	★★★	10
4	**Enrolment of advocates**	I	8/10	A ×5 · B ×4	Both	★★★	13
5	**Bar Council of India and State Bar Councils**	I	6/10	A ×1 · B ×6	Essay	★★★	16
6	**Duties of an advocate**	II	8/10	A ×4 · B ×5	Both	★★★	19
7	**Right to practise**	I	5/10	A ×6 · B ×1	Short note	★★☆	22
8	**Seven lamps of advocacy and the elements of advocacy**	II	6/10	A ×4 · B ×3	Both	★★☆	25
9	**Development of the legal profession in India**	I	5/10	A ×1 · B ×4	Essay	★★☆	28
10	**Salient features of the Advocates Act, 1961**	I	2/10	A ×0 · B ×2	Essay	★★☆	31
11	**Legal aid**	II	5/10	A ×5 · B ×0	Short note	★★☆	33
12	**Solicitors firm**	I	5/10	A ×5 · B ×0	Short note	★★☆	36
13	**Bar–Bench relations**	IV	5/10	A ×4 · B ×1	Short note	★★☆	38
14	**Short-note corner**	I	3/10	A ×5 · B ×0	Short note	★☆☆	40

★★★ = asked in 6 or more papers · ★★ = 2–5 papers · ★ = once or never (syllabus topics such as AIBE). Short-note topics (legal aid, solicitors firm, Bar-Bench) have never been set as a full essay; Bar Council and accounting questions come almost only as essays.

The subject on one page

The four units of the syllabus with every ranked topic — read this before and after the book

Unit I — The profession, Advocates Act, enrolment, right to practise

- **4.** Enrolment of advocates ★★★
- **5.** Bar Council of India and State Bar Councils ★★★
- **7.** Right to practise ★★☆
- **9.** Development of the legal profession in India ★★☆
- **10.** Salient features of the Advocates Act, 1961 ★★☆
- **12.** Solicitors firm ★★☆
- **14.** Short-note corner ★☆☆

Unit II — Seven lamps, duties, legal aid, Code of Ethics

- **6.** Duties of an advocate ★★★
- **8.** Seven lamps of advocacy and the elements of advocacy ★★☆
- **11.** Legal aid ★★☆

Unit III — Misconduct and disciplinary proceedings

- **1.** Professional misconduct ★★★
- **2.** Disciplinary committees and disciplinary proceedings ★★★

Unit IV — Accountancy for lawyers, Bar-Bench relations

- **3.** Accountancy for lawyers ★★★
- **13.** Bar–Bench relations ★★☆

How each topic is laid out

⚡ Quick scan
Five bold lines = the whole answer. Read these on the last day.

✍️ How it was asked
The exact wordings from past papers, with years.

🏆 Topper answer
Headings for a 16-mark essay; the green box picks the lines for a 6-mark note.

⚖ Case stories
Story → what the court held → one line to remember.

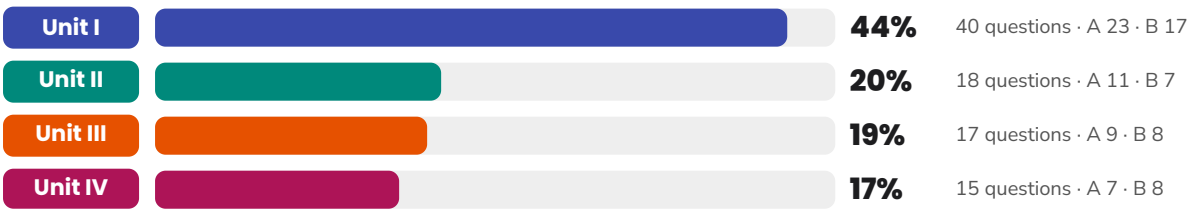
📊 Pictures
Flows, ladders, tiles and tables for the structure.

🏙 Real-world picture
The same law in a Telangana courtroom.

🧠 Memory trick
An acronym or number chain.

📅 Years
When it was asked — Part A or Part B.

Where the marks come from — unit-wise share of the 90 questions



The smart plan. Prepare **four essays** — misconduct & disciplinary committees, accountancy, Bar Councils, enrolment — and **eight short notes** — misconduct, solicitors firm, legal aid, Bar-Bench, disciplinary committee, seven lamps / elements, right to practise & Art. 19(1)(g), enrolment & disqualification. With these, a student could have answered both parts in **9 of the 10 papers** (all except Jan/Feb 2014). Then add duties of advocates, seven lamps and the history of the profession as essay options.

RANK 1 · UNIT III

1 Professional misconduct

★ ★ ★ **asked in 10 of 10 papers** Part A ×6 Part B ×4

📅 Part A: 2013 · 2015 · 2016 · 2017 · 2019 · 2020 — Part B (with procedure): 2014 · 2017 · 2019 · 2021

S.35 Advocates Act | S.49(1)(c) | BCI Rules Part VI Ch. II | S.24A | S.36B

A lawyer who stands at the court gate calling out to clients, one who keeps a widow's compensation, one who threatens a judge — all three are 'misconduct'. What do they have in common?

⚡ QUICK SCAN — THE WHOLE ANSWER IN FIVE LINES

1. **Misconduct = conduct that makes an advocate unworthy of the profession.** The Advocates Act does **not define** it — S.35 only says **"professional or other misconduct"**.
2. **Two kinds: professional misconduct** (in court or towards a client) and **other misconduct** (private conduct that disgraces the profession) — **Noratanmal Chouraria (2004)**.
3. **The yardstick:** the **BCI Rules, Part VI, Chapter II** (standards of professional conduct, made under **S.49(1)(c)**).
4. **Not misconduct:** an honest mistake or wrong advice — **"a world of difference between improper advice and wrong advice"** (**Pandurang Khandekar, 1984**).
5. **Punishment (S.35(3)): reprimand · suspension · removal from the roll**; appeal to BCI (S.37) and Supreme Court (S.38) within **60 days**.

✍ HOW IT HAS BEEN ASKED

- Professional misconduct (short note) — 6 papers
- What is professional misconduct? Explain the procedure for disciplinary proceedings (2014)
- How are the misconduct cases against advocates determined by the Bar Council? (2019)
- Procedure to prove or disprove misconduct of an advocate (2021)

Nine faces of professional misconduct — each with its rule and its case

1 Touting & advertising
Standing at court gates calling clients · **r.36** · *Dabholkar 1976*

2 Share of the result
Fee as a % of compensation · **r.20** · *B. Sunitha 2018*

3 Client's money
Keeping or misusing it · **rr.25–30** · *Rangadurai 1979*

4 Client's property
Buying property under litigation · **r.22** · *P.D. Gupta 1997*

5 Holding files hostage
No lien on case files for fees · *R.D. Saxena 2000*

6 Bribe or threaten a judge
Removal from the roll · *Shambhu Ram Yadav 2001* · *V.C. Mishra 1995*

7 Both sides
Appearing for the opponent in the same matter · **r.33**

8 Strikes & boycotts
No right to strike courts · *Harish Uppal 2003*

9 Outside the court
'Other misconduct' — threats, fraud, crimes of moral turpitude · *Noratanmal 2004*

If it shames the robe, it is misconduct

🏆 Topper answer

16-mark essay — every heading below; 6-mark note — see the green box

Introduction

The legal profession is a **noble profession, not a trade** — an advocate is an **officer of the court** and a trustee of the client's cause. Society trusts lawyers with secrets, money and liberty. When an advocate betrays that trust, the **Bar Council** (not the court) punishes him under **S.35 of the Advocates Act, 1961**.

Meaning

The Act does not define misconduct. **Black's Law Dictionary**: **"a transgression of some established and definite rule of action, a forbidden act, a dereliction from duty, unlawful behaviour, wilful in character, improper or wrong behaviour"** — its synonyms are misdemeanour, misdeed, misbehaviour, delinquency, impropriety; **but not negligence or carelessness**.

In simple words: **any act or omission that makes an advocate unworthy to remain in the profession**.

Professional v other misconduct

Point	Professional misconduct	Other misconduct
Where	In court, with clients, colleagues, opponents	In private life, outside professional work
Example	Touting, contingency fee, misusing client money	Assault, fraud, conviction for a crime of moral turpitude
Test	Breach of BCI Rules / duties	Conduct that brings the profession into disrepute
Case	Dabholkar (touting)	Noratanmal Chouraria (threats outside court)

Acts held to be misconduct (with rules)

1. **Soliciting work and advertising** — directly or through touts, circulars, signboards beyond permitted size (**r.36**).
2. **Contingency or percentage fees** — fee depending on the result, or a share of the claim (**r.20**).
3. **Misappropriating client's money** and not keeping accounts (**rr.25–30**).
4. **Buying property** in a suit or execution in which he is engaged (**r.22**).
5. **Appearing for both sides** / for the opponent in the same matter (**r.33**).
6. **Attempting to influence or bribe a judge**, or abusing the court (**rr.1–4**).
7. **Withholding client's papers** to force payment of fees.
8. **Breach of confidentiality** — disclosing the client's communications (**r.17**; S.126 Evidence Act, now **S.132 BSA, 2023**).
9. **Taking up full-time employment or business** while practising (**rr.47–49**).
10. **Strikes and court boycotts** (Harish Uppal).

Punishment — S.35(3)

After hearing, the State Bar Council's Disciplinary Committee may: **(a) dismiss** the complaint, **(b) reprimand**, **(c) suspend** for a period it thinks fit, or **(d) remove the name from the State roll**. A suspended advocate cannot practise in **any court in India** (S.35(4)).

Conclusion

★ Misconduct is judged by the **standard of an honourable profession**: an honest mistake is forgiven, dishonesty is not. The Bar Council's disciplinary power keeps the Bar **clean, trusted and independent**.

6 FOR A 6-MARK SHORT NOTE, WRITE

1. Meaning + Black's definition (2 lines)
2. Professional v other misconduct (table)
3. Any 5 examples with rule numbers
4. S.35(3) punishments
5. One case — Dabholkar or V.C. Mishra

THE CASES — AS STORIES

Bar Council of Maharashtra v M.V. Dabholkar
(1976) 2 SCC 291 · Supreme Court

STORY Some Bombay advocates used to **stand at the entrance of the magistrates' courts** and call out to litigants arriving there, offering their services — like hawkers. The Bar Council took action; the BCI later set aside the finding, so the **State Bar Council itself appealed** to the Supreme Court.

HELD **Touting is grave professional misconduct.** Justice Krishna Iyer: **"law is not a trade, briefs no merchandise"**. The State Bar Council, as **guardian of the profession**, is a 'person aggrieved' and **can appeal** under S.38.

REMEMBER **Never solicit work. The Bar Council can fight for the profession's honour.**

In re: Vinay Chandra Mishra
(1995) 2 SCC 584 · Supreme Court

STORY A **senior advocate (then Chairman of the BCI)** was arguing before a judge of the Allahabad High Court. When the judge asked a question, he **shouted at the judge, insulted him and threatened** to get him transferred or impeached.

HELD Convicted of **criminal contempt** — simple imprisonment of 6 weeks (suspended) and **suspension from practice for 3 years**. Later, in **Supreme Court Bar Association v Union of India (1998)**, the Court said it cannot suspend a licence in contempt — **only the Bar Council can, under the Advocates Act**.

REMEMBER **Court punishes contempt; Bar Council punishes misconduct.**

Shambhu Ram Yadav v Hanuman Das Khatry
(2001) 6 SCC 1 · Supreme Court

STORY An advocate **wrote a letter to his own client** asking for money so that he could **"influence" the judge** hearing the case. The client complained to the Bar Council.

HELD The Bar Council ordered **removal of his name from the roll** and the Supreme Court **upheld it** — an advocate who offers to corrupt a judge is unfit to remain in the profession.

REMEMBER **Bribery talk = removal, the heaviest punishment.**

Noratanmal Chouraria v M.R. Murli
(2004) 5 SCC 689 · Supreme Court

STORY An advocate was accused of **threatening and misbehaving with a litigant** in a dispute. He argued that S.35 covers only misconduct done as a lawyer.

HELD **Rejected.** S.35 says **"professional or other misconduct"** — it covers any conduct that makes a person **unworthy** of being an advocate, even outside professional work.

REMEMBER **The robe follows you home.**

P.D. Gupta v Ram Murti
(1997) 7 SCC 147 · Supreme Court

STORY An advocate handling a dispute over a deceased person's property **bought the disputed property himself** while the litigation was pending, and later sold it at a profit.

HELD **Professional misconduct** — he exploited his position and the client's trust; the **suspension** imposed on him was upheld.

REMEMBER **Never buy what your client is fighting over.**

Pandurang Dattatraya Khandekar v Bar Council of Maharashtra
(1984) 2 SCC 556 · Supreme Court

STORY Advocates were charged with misconduct over the advice they gave a client.

HELD **"There is a world of difference between the giving of improper legal advice and the giving of wrong legal advice."** Mere negligence or an error of judgment is **not** misconduct; the charge must be clearly proved.

REMEMBER **Mistake ≠ misconduct.**

REAL-WORLD PICTURE

Adv. Kiran at Hyderabad's City Civil Court collects ₹2 lakh from a client to deposit as court fee and decree amount, but keeps it in his own account for months and gives vague answers. The client complains to the **Bar Council of Telangana**. This is misuse of client money (**rr.25–27**) — the Disciplinary Committee can **suspend** him or even **remove** his name.

MEMORY TRICK

Remember the 9 tiles in this order: **T-S-M-P-F-B-B-S-O** — Touting, Share, Money, Property, Files, Bribe, Both sides, Strikes, Outside.

RANK 2 · UNIT III

2 Disciplinary committees and disciplinary proceedings

★★★ asked in 9 of 10 papers | Part A ×3 | Part B ×8

📅 Part A: 2016 · 2018 · 2022 — Part B: 2013 · 2014 · 2016 · 2017 (×2) · 2019 · 2020 · 2021

S.9 | S.35 | S.36 | S.36B | S.37 | S.38 | S.42 | S.44 | S.48A

> ? *Who judges the judges' officers? When a client complains about a lawyer, who hears it — a court, the police, or fellow lawyers?*

⚡ QUICK SCAN — THE WHOLE ANSWER IN FIVE LINES

1. **Who punishes advocates?** Not the courts — the **Disciplinary Committee (DC) of the State Bar Council** (**S.35**), and the **BCI's DC** (**S.36**).
2. **DC = 3 members (S.9):** **2 elected from the Council + 1 co-opted advocate** with 10 years' standing who is not a Council member; the **senior-most** advocate presides.
3. **Procedure:** complaint → SBC refers to DC → **notice to the advocate and the Advocate-General** → hearing with **civil-court powers (S.42)** → order.
4. **Orders (S.35(3)):** **dismiss · reprimand · suspend · remove**. Must be decided within **1 year**, else the case goes to the BCI (**S.36B**).
5. **Appeals:** SBC DC → **BCI (S.37, 60 days)** → **Supreme Court (S.38, 60 days)**. DC can **review** its own order within 60 days (**S.44**).

✍ HOW IT HAS BEEN ASKED

- Disciplinary committee(s) — short note (2016, 2018, 2022)
- Powers and functions of the disciplinary committee under the Advocates Act (2017, 2020)
- Procedure of the State Bar Council's DC when a complaint is received (2013, 2014)
- Body or authority empowered to punish for professional or other misconduct (2017)
- Functions of BCI and State Bar Councils in disciplinary proceedings (2016)
- Procedure to prove or disprove misconduct of an advocate (2021)

The journey of a complaint — State Bar Council

Complaint (by client, court or on its own) → **State Bar Council** ('reason to believe' → refers (S.35(1))) → **Disciplinary Committee** (3 members (S.9)) →

Notice (advocate + Advocate-General (S.35(2))) → **Hearing & evidence** (civil-court powers (S.42)) → **Order (S.35(3))** (dismiss · reprimand · suspend · remove)

Time limit: **1 year** from the complaint, or the case **moves to the BCI** (S.36B).

Appeal ladder

SBC Disciplinary Committee — decides first (S.35)

BCI Disciplinary Committee — appeal in 60 days (S.37) · own motion / transfer (S.36)

Supreme Court — appeal in 60 days (S.38)

State → BCI → Supreme Court, 60 days each

🏆 **Topper answer** 16-mark essay — every heading below; 6-mark note — see the green box

Introduction

Before 1961, **High Courts** disciplined lawyers. The **Advocates Act, 1961** made the profession **self-regulating**: misconduct is now judged by **Disciplinary Committees of the Bar Councils** — lawyers judging lawyers, with a final appeal to the Supreme Court.

Constitution of Disciplinary Committees — S.9

- Every Bar Council shall constitute **one or more DCs**.
- Each DC = **three persons**: **two** elected by the Council from **its members**, and **one co-opted** from advocates qualified under the proviso to S.3(2) (10 years' standing) who are **not members** of the Council.
- The **senior-most advocate** among them is the **Chairman**.

Procedure before the State Bar Council DC — S.35

1. **Complaint or own motion** — on a complaint 'or otherwise', if the SBC has **reason to believe** an advocate is guilty of professional or other misconduct, it **refers the case to its DC** (S.35(1)). It may also withdraw a case from one DC and give it to another (S.35(1A)).
2. **Hearing date and notice** — to the **advocate** and to the **Advocate-General of the State** (S.35(2)); the AG may appear (S.35(5)).
3. **Inquiry** — evidence by both sides; the DC has **civil-court powers** (S.42).
4. **Order** — after giving the advocate a **full opportunity of being heard** (natural justice), the DC passes an order under **S.35(3)**, and may also order **costs**.
5. **Time limit** — disposal within **one year** of the complaint; otherwise it **stands transferred to the BCI** (S.36B).

Powers of the Disciplinary Committee — S.42

Power	Meaning
Summon and examine	Enforce attendance and examine any person **on oath**
Documents	Discovery and production of documents
Affidavits	Receive evidence on affidavits
Public records	Requisition records from any court or office
Commissions	Issue commissions for examining witnesses or documents
Judicial proceeding	Its proceedings are **judicial proceedings** for the offences of false evidence and insulting a public servant

Limit: a **presiding officer of a court** cannot be summoned without the **High Court's sanction**.

Orders the DC can pass — S.35(3)

(a) dismiss the complaint · **(b)** reprimand · **(c)** suspend from practice for a period · **(d)** remove the name from the State roll. A **suspended** or removed advocate cannot practise **anywhere in India** (S.35(4)).

Disciplinary powers of the BCI — S.36, 37, 48A

- **S.36** — BCI's own DC tries advocates **not on any State roll**, and may **withdraw** a case pending before a State DC to itself.
- **S.37** — **appeal** to the BCI against a State DC order within **60 days**.
- **S.48A** — BCI may call for records and **revise** any State Bar Council proceeding.

Appeal to the Supreme Court — S.38

Any person aggrieved by a BCI order under S.36 or S.37 (including the Advocate-General, and the State Bar Council — **Dabholkar**) may appeal to the **Supreme Court within 60 days**.

Review — S.44

A DC may **review** its own order within **60 days**; a State DC's review takes effect only after **BCI approval**.

Conclusion

★ The disciplinary scheme keeps the profession **self-governed but accountable**: fair hearing, civil-court powers, a 1-year deadline and two appeals.

6 FOR A 6-MARK SHORT NOTE, WRITE

1. S.9 composition (2+1, senior-most chairman)
2. Procedure in 4 steps — reference, notice, hearing, order
3. S.35(3) four orders
4. S.42 powers (any 3)
5. Appeals S.37/S.38 — 60 days each

⚖ THE CASES — AS STORIES

Supreme Court Bar Association v Union of India

(1998) 4 SCC 409 · Constitution Bench

📖 STORY After the V.C. Mishra case, the Supreme Court Bar Association challenged the Court's power to **suspend an advocate's licence** while punishing him for contempt.

⚖ HELD The Supreme Court can punish **contempt**, but it **cannot suspend or remove an advocate** in contempt proceedings — that power belongs to the **Bar Councils under the Advocates Act**. Art. 142 cannot override the statute.

💡 REMEMBER **Contempt → court. Licence → Bar Council.**

Mahipal Singh Rana v State of Uttar Pradesh

(2016) 8 SCC 335 · Supreme Court

📖 STORY An advocate in **Etah (U.P.)** abused and **threatened a civil judge** in open court. He was convicted of criminal contempt by the High Court.

⚖ HELD Supreme Court **upheld** the conviction and said the **Bar Council must also act** on such conduct. It asked the Law Commission to review the regulatory scheme — leading to the **Law Commission's 266th Report (2017)** on the Advocates Act.

💡 REMEMBER **Bar Councils must not sleep over misconduct.**

REAL-WORLD PICTURE

A client in Warangal complains that her advocate took the fee but never filed the appeal. The **Bar Council of Telangana** refers it to its DC. The DC sends notice to the advocate and the Advocate-General, records evidence, and **suspends him for 6 months**. He appeals to the **BCI within 60 days**; if he loses there, he can go to the **Supreme Court within 60 days**.

MEMORY TRICK

3-4-60-1: 3 members · 4 orders · 60 days for each appeal · 1 year to decide.

RANK 3 · UNIT IV

3 Accountancy for lawyers — nature, functions, branches and rules

★★★ asked in 8 of 10 papers | Part A ×3 | Part B ×8

📅 Part A: 2013 · 2016 · 2018 — Part B: 2013 · 2014 · 2015 · 2016 · 2017 · 2018 · 2019 · 2022

BCI Rules rr.25–32 | S.44AA IT Act | S.44AB | S.44ADA | S.28 BSA (old S.34 Evidence Act)

A client gives you ₹50,000 — ₹20,000 as fee, ₹30,000 for court fee and stamps. Six months later she asks: where did my money go? Can you answer in one page?

QUICK SCAN — THE WHOLE ANSWER IN FIVE LINES

1. **Accounting** = **recording, classifying, summarising and interpreting** money transactions (AICPA). It is the **language of business**.
2. **Functions:** **record → classify → summarise → analyse & interpret → communicate**; plus **legal compliance** and **protecting assets**.
3. **Branches:** **financial · cost · management · tax · auditing · forensic** accounting.
4. **Why lawyers need it:** (1) **BCI Rules 25–32** — accounts of **client's money**; (2) **Income-tax** — books under **S.44AA**, audit above ₹50 lakh (**S.44AB**); (3) **cases about money** — partnership, tax, insolvency, frauds, maintenance, compensation.
5. **Golden rule (r.26):** fee money and expense money are **separate**; **no diversion of expenses to fees without the client's written consent**.

HOW IT HAS BEEN ASKED

- Explain the nature and functions of accounting (2017, 2019)
- Various / important branches of accounting relevant to advocates (2014, 2015 — A: 2016, 2018)
- Explain the need for accountancy for lawyers (2016) · Accountancy (2022)
- "An advocate should keep accounts of the client's money" — rules of accountancy of lawyers (2013, 2018)
- Accounting for lawyers — short note (2013)

The accounting cycle — from one rupee to a report

Transaction (client pays ₹50,000) → **Journal** (record it (date-wise)) → **Ledger** (classify — client a/c, fee a/c) → **Trial balance** (summarise & check) → **Final accounts** (P&L + balance sheet) → **Interpret** (report to client / tax)

Six branches of accounting — and where a lawyer meets each

Branch	What it does	Where a lawyer meets it
Financial accounting	Records transactions; prepares profit & loss account and balance sheet	Own practice accounts; reading a company's balance sheet in a case
Cost accounting	Finds the cost of each product, job or service	Pricing disputes, contract claims, cost of a case
Management accounting	Uses accounts for planning and decisions	Running a law firm — budgets, partner shares
Tax accounting	Computes income and tax as per tax law	Income-tax, GST matters; lawyer's own returns
Auditing	Independent check of accounts	Tax audit (S.44AB), company and trust disputes
Forensic accounting	Investigates fraud with accounting evidence	Bank frauds, cheating, money laundering cases

🏆 **Topper answer** 16-mark essay — every heading below; 6-mark note — see the green box

Introduction

An advocate handles **other people's money** — fees, court fees, decree amounts, settlement money. Clean accounts are therefore a matter of **ethics, law and survival**. The OU syllabus calls it **"Accountancy for Lawyers"** (Unit IV).

Meaning of accounting

American Institute of Certified Public Accountants (AICPA): "Accounting is the art of recording, classifying and summarising in a significant manner and in terms of money, transactions and events which are, in part at least, of a financial character, and interpreting the results thereof."

Book-keeping is only the recording part; **accounting** goes further — summarising and interpreting.

Nature of accounting

1. **Art and science** — an art of recording, a science of rules (GAAP).
2. **A process** — record → classify → summarise → interpret.
3. **Money measurement** — only transactions measurable in money are recorded.
4. **Language of business** — communicates financial position to owners, clients, tax authorities, courts.
5. **Based on concepts** — business entity, going concern, accrual, consistency, prudence and the **dual aspect**: **Assets = Liabilities + Capital** (double entry).

Functions of accounting

1. **Recording** — journal and subsidiary books (cash book, fee register).
2. **Classifying** — ledger accounts (client-wise, head-wise).
3. **Summarising** — trial balance, profit & loss account, balance sheet.
4. **Analysing and interpreting** — what the figures mean.
5. **Communicating** — reports to clients, partners, banks, tax authorities.
6. **Legal compliance** — income-tax, GST, audit; evidence in court.
7. **Protecting assets** — prevents fraud and misuse.

Branches of accounting

Financial, cost, management, tax accounting, auditing and forensic accounting (see the table).

Need for accountancy for lawyers

1. **Professional ethics — client's money (BCI Rules, Part VI, Ch. II):**
   - **r.25** — keep accounts of client's money: amounts received, expenses incurred, fees debited, with dates.
   - **r.26** — entries must show whether money is for **fees or expenses**; **no diversion of expenses to fees without written consent**.
   - **r.27** — inform the client **as early as possible** when money is received on his behalf.
   - **r.28** — after the case ends, the settled fee may be appropriated from the unspent balance.
   - **r.29** — if the fee was not settled, deduct the fee under court rules and **refund the balance**.
   - **r.30** — give the client a **copy of his account** on demand.
   - **r.31** — do not convert client funds into **loans**; **r.32** — do not **lend money** to a client for the litigation.
2. **Tax law** — legal profession must keep books (**S.44AA, Income-tax Act** with Rule 6F); **tax audit** if gross receipts exceed **₹50 lakh** (S.44AB); presumptive taxation option (S.44ADA). Under **GST**, legal services by an advocate to a business entity are taxed under **reverse charge** — the client pays.
3. **Accounting and law in litigation** — suits for accounts and partnership, company and insolvency (IBC) cases, tax appeals, bank frauds, matrimonial maintenance (income), motor-accident compensation (loss of income). **Books of account are evidence**: relevant under **S.28 BSA, 2023 (old S.34 Evidence Act)**, but **not alone sufficient to charge a person** (**CBI v V.C. Shukla**).
4. **Managing a practice** — fees, expenses, staff salaries, chamber rent, a law firm's partner shares.

Books an advocate should keep

Book	Purpose
Cash book & bank book	Every receipt and payment
Client ledger	One account per client — fees and expenses separately
Fee receipt book	Serially numbered receipts
Expense vouchers	Court fee, stamps, travel, copies
Case diary	Links each payment to a case and date

Conclusion

★ For a lawyer, accounts are not just arithmetic — they are **proof of honesty**. Clean books protect the client, satisfy the tax law and save the advocate from a **misconduct complaint**.

6 FOR A 6-MARK SHORT NOTE, WRITE

1. AICPA definition
2. Nature in 4 points or functions in 5 steps
3. Branches — 4 with one line each
4. Need for lawyers: BCI rr.25–30 + S.44AA
5. Conclusion: accounts = proof of honesty

THE CASES — AS STORIES

Central Bureau of Investigation v V.C. Shukla (Jain Hawala case)

(1998) 3 SCC 410 · Supreme Court

STORY The CBI seized **diaries and loose sheets** of the Jain brothers recording payments to many leading politicians. The prosecution relied mainly on these entries.

HELD Entries in **books of account** are relevant evidence, but **they alone are not sufficient to charge a person with liability**; there must be **independent corroboration**. Loose sheets are not 'books' kept in the regular course of business. The charges were quashed.

REMEMBER **Accounts are evidence, not proof by themselves.**

V.C. Rangadurai v D. Gopalan

(1979) 1 SCC 308 · Supreme Court

STORY An elderly, hard-of-hearing couple gave money to their advocate to **lend on mortgage** for them. He prepared **fake mortgage deeds** in favour of non-existent persons and **kept the money**.

HELD **Grave professional misconduct.** The Supreme Court upheld the finding; seeing his repentance and repayment, it modified the punishment, stressing **correction** — but the lesson stood: **client's money is sacred**.

REMEMBER **Misusing client money is a breach of trust.**

REAL-WORLD PICTURE

Adv. Meena receives ₹50,000 from a client in Secunderabad: ₹20,000 fee + ₹30,000 for court fee and stamps. She enters it in her **client ledger** under two heads, issues a numbered receipt, spends ₹26,500 on court fee and copies, and when the case ends **refunds ₹3,500** with a one-page statement. Rules 25–30 satisfied, no complaint possible.

MEMORY TRICK

Functions: **R-C-S-A-C** — Record, Classify, Summarise, Analyse, Communicate.
Branches: **F-C-M-T-A-F** — Financial, Cost, Management, Tax, Audit, Forensic.

RANK 4 · UNIT I

4 Enrolment of advocates — qualifications, disqualifications and procedure

★★★ asked in 8 of 10 papers | Part A ×5 | Part B ×4

📅 Part A: 2013 · 2017 · 2019 · 2020 (×2) — Part B: 2015 · 2017 · 2020 · 2022

S.2(1)(a) | S.16 | S.17 | S.24 | S.24A | S.25 | S.26 | S.26A | S.22 | S.28

You have your LL.B. degree. What else stands between you and the black gown?

⚡ QUICK SCAN — THE WHOLE ANSWER IN FIVE LINES

1. **Advocate (S.2(1)(a))** = an advocate **entered in any roll** under the Advocates Act.
2. **Qualifications (S.24):** **citizen of India · 21 years · recognised law degree · enrolment fee · State Bar Council rules**.
3. **Disqualifications (S.24A):** conviction for **moral turpitude** · conviction under the **Untouchability (Protection of Civil Rights) Act** · dismissal from State service for moral turpitude — lasts **2 years** after release or dismissal.
4. **Procedure:** application to the **State Bar Council** where you will practise (**S.25**) → **Enrolment Committee** (**S.26**) → if refusal is proposed, **BCI's opinion** → entry in the **State roll (S.17)** + **certificate (S.22)** → **AIBE** for the Certificate of Practice.
5. **Fee:** only **₹750 (₹600 SBC + ₹150 BCI); ₹125 for SC/ST** — SBCs cannot charge more (**Gaurav Kumar, 2024**).

✍ HOW IT HAS BEEN ASKED

- Enrolment of advocates / an advocate (2019, 2020 A; 2022 B)
- Disqualification of enrolment / of an advocate / Disqualification (2013, 2017, 2020)
- Qualifications and disqualifications for enrolment as advocates (2015)
- Regulation governing enrolment and practice (2017)
- Who is an advocate? Procedure for admission of an advocate (2020)

The six-tick test for enrolment — S.24 + S.24A

1 **Citizen of India** (or a national of a country allowing Indians to practise there — reciprocity)	2 **21 years** of age completed
3 **Law degree** from a university recognised by the **BCI**	4 **Enrolment fee** paid — ₹600 to SBC + ₹150 to BCI (SC/ST: ₹100 + ₹25)
5 Fulfils the **State Bar Council's rules** (S.28)	6 **Not disqualified** under S.24A

All six ✓ → name entered in the State roll; certificate under S.22

From degree to gown

Application to SBC where you will practise (S.25) → **Enrolment Committee** 3 members (S.10(1)(b)) → **Refuse?** refer to BCI for opinion (S.26(1)) → **Entry in State roll** (S.17) → **Certificate** of enrolment (S.22) → **AIBE** → Certificate of Practice

🏆 **Topper answer** 16-mark essay — every heading below; 6-mark note — see the green box

Introduction

Before 1961 there were many classes of lawyers — advocates, vakils, pleaders, mukhtars, attorneys. The **Advocates Act, 1961** created **one class: advocates** (S.29), admitted by **State Bar Councils** under uniform rules.

Who is an advocate?

S.2(1)(a): **"advocate" means an advocate entered in any roll under the provisions of this Act**. Under **S.16**, there are two classes — **senior advocates** and **other advocates**.

Qualifications — S.24(1)

1. **Citizen of India** — a foreign national may be admitted only if his country allows Indians to practise there (**reciprocity**).
2. **Completed 21 years** of age.
3. **Degree in law** from a university in India recognised by the **BCI** (3-year after graduation or 5-year integrated) — or a foreign degree recognised by the BCI.
4. **Paid the enrolment fee** — ₹600 to the SBC and ₹150 to the BCI (**₹100 + ₹25** for SC/ST) (S.24(1)(f)).
5. **Fulfils other conditions** in the rules of the State Bar Council (S.28).

Disqualifications — S.24A

No person shall be admitted if he:

1. is **convicted of an offence involving moral turpitude**;
2. is **convicted under the Untouchability (Offences) Act, 1955** (now Protection of Civil Rights Act);
3. is **dismissed or removed from employment** under the State on a charge involving moral turpitude.

Duration: the disqualification **ends 2 years after release, or after the dismissal**. It does **not** apply to a person released on **probation** under the Probation of Offenders Act.

Moral turpitude = conduct that is base, vile or depraved — cheating, forgery, bribery, theft.

Procedure for enrolment

1. **Application** in the prescribed form to the **State Bar Council** within whose jurisdiction he proposes to practise (**S.25**).
2. **Enrolment Committee** (3 members, S.10(1)(b)) scrutinises documents — degree, age, character, no disqualification (**S.26**).
3. If the Committee **proposes to refuse**, it must **refer the application to the BCI** for opinion and act according to it (S.26(1)).
4. **Name entered in the State roll** (S.17); the roll is sent to the BCI for the common roll (S.19–20).
5. **Certificate of enrolment** issued (S.22).
6. **All India Bar Examination** — pass it to get the **Certificate of Practice** (upheld in **Bonnie FOI Law College, 2023**).

Removal and regulation

- **S.26A** — a name may be **removed** from the roll if the advocate **dies** or **requests** it.
- **S.35** — removal as **punishment** for misconduct.
- An advocate who takes up **full-time employment** or a **business** must suspend practice (BCI Rules rr.47–49).

Conclusion

★ Enrolment is the **gateway**: S.24 says who may enter, S.24A who may not, and the Bar Councils guard the gate — but they cannot add **unreasonable** barriers (age limits, excessive fees) of their own.

6 FOR A 6-MARK SHORT NOTE, WRITE

1. S.2(1)(a) definition
2. S.24 — 5 qualifications
3. S.24A — 3 disqualifications + 2 years
4. Procedure: S.25 → S.26 → S.17 → S.22
5. One case: ICLA v BCI or Gaurav Kumar

THE CASES — AS STORIES

Indian Council of Legal Aid & Advice v Bar Council of India
(1995) 1 SCC 732 · Supreme Court

📖 STORY In 1993 the BCI made a rule that **no person above 45 years** could be enrolled as an advocate — it feared retired people would crowd the profession.

⚖ HELD **Rule struck down.** It was **arbitrary and discriminatory** (Art. 14) and **beyond the BCI's rule-making power** — S.24 lays down the qualifications and has no upper age limit.

💡 REMEMBER **No age bar for becoming an advocate.**

Gaurav Kumar v Union of India
30 July 2024 · Supreme Court (3 judges)

📖 STORY Many State Bar Councils were charging **as much as ₹42,000** for enrolment under names like 'development fee' and 'library fee'. Law graduates challenged this.

⚖ HELD **Illegal.** S.24(1)(f) fixes the fee: **₹750 in total (₹600 + ₹150), ₹125 for SC/ST**. Extra charges violate **Art. 14 and 19(1)(g)** and deter the poor and marginalised from the profession. (Applied from the date of judgment; no refund of past fees.)

💡 REMEMBER **Fees fixed by Parliament cannot be raised by Bar Councils.**

Haniraj L. Chulani v Bar Council of Maharashtra & Goa
(1996) 3 SCC 342 · Supreme Court

📖 STORY A **practising doctor** obtained a law degree and wanted to be enrolled while **continuing his medical practice**. The Bar Council refused under its rule barring persons in another profession.

⚖ HELD **Rule upheld.** Law demands **full-time attention and loyalty**; the restriction is reasonable under **Art. 19(6)**.

💡 REMEMBER **One profession at a time.**

REAL-WORLD PICTURE

Priya, 23, finishes LL.B. at Osmania. She applies to the **Bar Council of Telangana** with her degree, ID and character certificates, pays **₹750**, and appears before the enrolment committee. Her name goes on the State roll; she gets her enrolment certificate, then clears the **AIBE** to receive the Certificate of Practice.

MEMORY TRICK

S.24 = **C-A-D-F-R**: Citizen, Age 21, Degree, Fee, Rules. S.24A = **M-U-D** — Moral turpitude, Untouchability, Dismissal (2 years).

RANK 5 · UNIT I

5 Bar Council of India and State Bar Councils — powers, functions and committees

★★★ asked in 6 of 10 papers | Part A ×1 | Part B ×6

📅 Part A: 2022 — Part B: 2014 · 2015 · 2018 · 2020 · 2021 · 2022

S.3 | S.4 | S.6 | S.7 | S.9 | S.9A | S.10 | S.15 | S.48A | S.48B | S.49

? *Doctors have the National Medical Commission. Who makes rules for lawyers, admits them and punishes them?*

⚡ QUICK SCAN — THE WHOLE ANSWER IN FIVE LINES

1. **Two-tier self-government:** **State Bar Councils (S.3)** in each State + the **Bar Council of India (S.4)** at the top; both are **bodies corporate** (S.5).
2. **SBC functions (S.6):** **admit advocates · keep the roll · try misconduct · protect advocates' rights · law reform · legal aid · funds and welfare**.
3. **BCI functions (S.7):** **standards of conduct · procedure for DCs · supervise SBCs · legal education & recognise universities · common roll · legal aid · foreign qualifications**.
4. **Committees:** SBC — **Executive (5)**, **Enrolment (3)**, **Disciplinary (3)**, **Legal Aid (5–9)**; BCI — **Executive (9)**, **Legal Education (10)**, Disciplinary, Legal Aid (**S.9, 9A, 10**).
5. **Powers:** rule-making (**S.15, 28, 49**), discipline (**S.35–37**), BCI's **revision (S.48A)** and **directions (S.48B)** over SBCs.

✍ HOW IT HAS BEEN ASKED

- Powers and functions of the Bar Council of India (2014, 2015, 2018, 2021)
- Powers of Bar Councils to maintain the standards of the legal profession (2020)
- Powers of the State Bar Council (2022 A)
- Committees constituted by the State Bar Council — with special reference to the admission committee (2022)

Structure of the Bar Councils

Advocates Act, 1961 — Bar Councils

Bar Council of India (S.4)
- AG + SG of India (ex officio)
- One member elected by each SBC
- Executive Committee — 9
- Legal Education Committee — 10
- Disciplinary + Legal Aid Committees

State Bar Council (S.3)
- Advocate-General of the State (ex officio)
- 15 / 20 / 25 elected members by electorate size
- Term — 5 years
- Executive (5) · Enrolment (3)
- Disciplinary (3) · Legal Aid (5–9)

SBC v BCI — functions side by side

	State Bar Council — S.6	Bar Council of India — S.7
Admission	**Admits advocates** to its roll; keeps the State roll	Keeps the **common roll**; recognises **universities** and foreign degrees
Conduct	**Tries misconduct** of advocates on its roll	**Lays down standards** of conduct and the procedure for all DCs; hears **appeals**
Control	Protects rights and interests of its advocates	**General supervision and control** over SBCs; revision (S.48A)
Education	Inspects universities on BCI's direction	**Promotes legal education**, sets standards
Service	Legal aid, seminars, welfare schemes, funds	Legal aid, law reform, welfare, funds

🏆 **Topper answer** 16-mark essay — every heading below; 6-mark note — see the green box

Introduction

The **Advocates Act, 1961** gave the legal profession **self-government** through elected Bar Councils — one for each State and one for India. They admit, regulate, educate, protect and discipline advocates.

State Bar Councils — S.3

- One for each State (e.g. **Bar Council of Telangana, Hyderabad**).
- **Members:** the **Advocate-General** of the State (ex officio) + advocates elected by the advocates on the State roll — **15** (electorate up to 5,000), **20** (5,001–10,000), **25** (above 10,000).
- Chairman and Vice-Chairman elected from among members; **term 5 years** (S.8).

Functions of State Bar Councils — S.6(1)

1. **Admit** persons as advocates on its roll and **prepare and maintain** the roll.
2. **Entertain and determine cases of misconduct** against advocates on its roll.
3. **Safeguard the rights, privileges and interests** of advocates.
4. Promote the growth of **Bar Associations**.
5. Promote and support **law reform**; conduct seminars, talks, publish journals.
6. **Organise legal aid** to the poor.
7. **Manage and invest funds**; provide for elections.
8. **Visit and inspect universities** as directed by the BCI.
9. **Welfare schemes** for indigent, disabled or other advocates (S.6(2)).

Bar Council of India — S.4

Members: the **Attorney-General** and **Solicitor-General of India** (ex officio) + **one member elected by each State Bar Council**. It elects its Chairman and Vice-Chairman.

Functions of the BCI — S.7(1)

1. **Lay down standards of professional conduct and etiquette** (BCI Rules, Part VI).
2. Lay down the **procedure for disciplinary committees** (its own and the SBCs').
3. **Safeguard rights, privileges and interests** of advocates.
4. **Promote law reform**.
5. **Deal with matters referred by SBCs**.
6. Exercise **general supervision and control over State Bar Councils**.
7. **Promote legal education** and lay down its standards in consultation with universities.
8. **Recognise universities** whose law degree qualifies for enrolment; visit and inspect them.
9. Conduct seminars, publish journals; **organise legal aid**.
10. **Recognise foreign qualifications** on reciprocity (S.47).
11. **Manage funds**, welfare schemes; hold elections.

Committees — S.9, 9A, 10

Committee	State Bar Council	Bar Council of India
Executive	5 members (S.10(1)(a))	9 members (S.10(2)(a))
Enrolment / admission	3 members (S.10(1)(b)) — scrutinises applications, S.26	—
Legal Education	—	10 members: 5 from BCI + 5 co-opted non-members (S.10(2)(b))
Disciplinary	One or more, 3 each (S.9)	One or more, 3 each (S.9)
Legal Aid	5 to 9 members (S.9A)	5 to 9 members (S.9A)

Enrolment (admission) committee: receives every application under S.25, checks qualifications (S.24) and disqualifications (S.24A); if it proposes refusal, it must refer to the BCI (S.26(1)).

Powers of Bar Councils to maintain standards

- **Rule-making** — S.15 (general), S.28 (SBC: enrolment), **S.49** (BCI: standards of conduct, legal education, conditions of practice).
- **Discipline** — S.35–37; **revision** S.48A; **directions** to SBCs S.48B.
- **Gatekeeping** — enrolment checks, **AIBE**, verification of certificates and place of practice.
- **Legal education** — approval and inspection of law colleges.

Limits: rules must stay within the Act and the Constitution — **ICLA v BCI (1995)** (no age bar), **Gaurav Kumar (2024)** (no extra fees).

Conclusion

★ The Bar Councils are the **parliament, gatekeeper, teacher and judge** of the legal profession — a model of self-regulation answerable to the Supreme Court.

6 FOR A 6-MARK SHORT NOTE, WRITE

1. Two-tier structure + composition (one line each)
2. SBC functions — 5
3. BCI functions — 5
4. Committees table
5. One case: Dabholkar / Bonnie FOI

THE CASES — AS STORIES

Bar Council of India v Bonnie FOI Law College
2023 · Supreme Court (Constitution Bench)

STORY The BCI's **All India Bar Examination** — a test after enrolment before a Certificate of Practice — was challenged as beyond its powers, relying on an earlier case (**V. Sudeer v BCI, 1999**) that had struck down BCI's pre-enrolment training rules.

HELD **AIBE is valid.** The BCI's power to lay down conditions of practice and standards includes a qualifying exam; it may even hold it **before enrolment**. **V. Sudeer** was held not to be good law on this point.

REMEMBER **BCI can test before it lets you practise.**

Bar Council of India v A.K. Balaji
(2018) 5 SCC 379 · Supreme Court

STORY Foreign law firms were setting up offices in India and advising clients. The question: can they practise law here?

HELD **'Practice of law' covers litigation and non-litigation (advice, drafting).** Foreign firms **cannot practise in India**; they may only **'fly in and fly out'** on a casual basis to advise on foreign law. The **BCI regulates** this field.

REMEMBER **BCI guards who may practise in India.**

REAL-WORLD PICTURE

The **Bar Council of Telangana** at Hyderabad enrols Osmania graduates, runs the **Advocates' Welfare Fund**, hears complaints through its disciplinary committees, and follows BCI rules on legal education and the AIBE.

MEMORY TRICK

SBC = **A-R-M-S**: Admit, Roll, Misconduct, Safeguard. BCI = **S-P-E-C-S**: Standards, Procedure, Education, Control, Supervision.

RANK 6 · UNIT II

6 Duties of an advocate — to the court, client, opponent, colleagues and society (BCI Code of Ethics)

★★★ asked in 8 of 10 papers | Part A ×4 | Part B ×5

📅 Part A: 2014 · 2016 · 2017 · 2020 — Part B: 2013 · 2018 · 2019 · 2020 · 2022

S.49(1)(c) | BCI Rules Part VI Ch. II | r.11 cab-rank | r.16 prosecutor | r.17 confidentiality | r.20 no contingency fee | r.36 no advertising | r.46 legal aid

An advocate's client tells him in confidence that he did commit the crime. Can the advocate still defend him? Can he tell the court?

QUICK SCAN — THE WHOLE ANSWER IN FIVE LINES

1. **Source:** **BCI Rules, Part VI, Chapter II — "Standards of Professional Conduct and Etiquette"**, framed under **S.49(1)(c)** — the **Bar Council Code of Ethics**.
2. **Court:** be **respectful, dignified, honest**; never influence a judge privately; restrain clients from unfair practices; proper dress.
3. **Client:** **accept briefs (cab-rank, r.11) · don't withdraw without cause · fearless defence · keep secrets (r.17) · no contingency fee (r.20) · accounts of money (rr.25–30)**.
4. **Opponent & colleagues:** **no direct dealing with a represented opponent (r.34) · keep promises (r.35) · no advertising or touting (r.36) · NOC before replacing a colleague**.
5. **Society:** **legal aid to the poor (r.46)**, uphold the rule of law, no strikes (**Harish Uppal**). A **prosecutor** must seek justice, not just conviction (**r.16**).

HOW IT HAS BEEN ASKED

- Duties of advocates towards the client, courts and other advocates (2018)
- Duties towards public and court — explain with decided cases (2020)
- Duties of an advocate under the Advocates Act (2022) · standards of professional conduct and etiquette (2019)
- "Advocate owes respect and courtesy to the court" — comment (2013)
- Duty towards client (2016, 2020) · Duty towards colleagues (2017) · Bar Council Code of Ethics (2014)

Five directions of duty — BCI Rules, Part VI, Chapter II

Duties of an advocate

Court
- Respect & dignity
- No private talk with judge
- Restrain unfair practices
- Dress code; no bands in public
- Not before a relative judge

Client
- Cab-rank: accept briefs (r.11)
- No withdrawal without cause (r.12)
- Fearless defence (r.15)
- Confidentiality (r.17)
- No contingency fee (r.20)
- Accounts (rr.25–30)

Opponent
- Deal only through his advocate (r.34)
- Keep legitimate promises (r.35)

Colleagues
- No advertising or touting (r.36)
- No name for unauthorised practice
- NOC before taking another's brief

Society
- Legal aid (r.46)
- Uphold rule of law
- No strikes
- Prosecutor: fair, not partisan (r.16)

Court · Client · Opponent · Colleague · Country

🏆 **Topper answer** 16-mark essay — every heading below; 6-mark note — see the green box

Introduction

An advocate is both an **officer of the court** and the **client's representative**. His duties run in five directions. Under **S.49(1)(c)** the BCI has framed the **Standards of Professional Conduct and Etiquette (BCI Rules, Part VI, Chapter II)** — popularly the **Bar Council Code of Ethics**. A breach is **misconduct** under S.35.

1. Duty to the court

- Act in a **dignified** manner; maintain a **respectful attitude** — the dignity of the judicial office is essential for society.
- **Not communicate privately** with a judge about a pending case; never use illegal or improper means to influence a decision.
- **Restrain the client** from unfair practices; refuse to act for a client who insists on them.
- **Dress code** — appear in prescribed dress; don't wear bands or gown in public places except on ceremonial occasions.
- Don't appear before a court where a **close relative** is the judge; don't appear in a matter in which he has a **pecuniary interest**; don't stand **surety** for a client.
- **No strikes or boycotts** — **Harish Uppal (2003)**.

2. Duty to the client

1. **Cab-rank rule (r.11)** — bound to accept a brief in courts where he practises, at a fee consistent with his standing, unless special circumstances justify refusal.
2. **Not withdraw** without sufficient cause and reasonable notice; refund the unearned fee (r.12).
3. Not accept a brief where he will be a **witness** (r.13); **full disclosure** of any interest in the case (r.14).
4. **Fearlessly uphold** the client's interests by fair and honourable means (r.15).
5. **Confidentiality** — never disclose communications (r.17; **S.126 Evidence Act, now S.132 BSA, 2023**).
6. **Not foment litigation** (r.18); act only on the client's instructions (r.19).
7. **No contingency fee / share of the result** (r.20); **no buying** of property in the litigation (r.22).
8. **Accounts** of client's money; separate fee and expenses; intimate receipts (rr.25–30). **No loans** to the client for the case (r.32).
9. **Never act for the opposite party** in the same matter (r.33).

3. Duty to the opponent

- **Not negotiate or communicate directly** with an opposite party who is represented by an advocate — only through that advocate (r.34).
- **Carry out legitimate promises** made to the opposite side, even if not in writing (r.35).

4. Duty to colleagues

- **No soliciting or advertising** — no circulars, touts, personal communications, interviews or photographs about cases (r.36; a simple website with name, contact, enrolment and areas of practice is now allowed).
- Not let his name be used for **unauthorised practice**; not accept a fee lower than that taxable under the rules where the client can pay.
- Not appear in a case where another advocate has filed **vakalat** without that advocate's **consent (NOC)**, unless the court permits.
- Respect seniors, help juniors — **fellowship**.

5. Duty to society and the profession

- **Legal aid** — anyone genuinely in need is entitled to legal assistance; give free aid to the indigent and oppressed (r.46).
- A **public prosecutor** must not press for conviction at any cost; **suppressing evidence** that could prove innocence is highly reprehensible (r.16).
- Uphold the **rule of law**, assist law reform, refuse **full-time employment or business** while practising (rr.47–52).

Conclusion

★ **The court gets his respect, the client his loyalty, the opponent his fairness, colleagues his courtesy and society his service** — that is the Code of Ethics in one line.

6 FOR A 6-MARK SHORT NOTE, WRITE

1. Source — S.49(1)(c), BCI Rules Part VI Ch. II
2. Pick the asked direction: 5–6 duties with rule numbers
3. One case: Harish Uppal / Shiv Kumar / R.D. Saxena
4. One-line conclusion

⚖ THE CASES — AS STORIES

Ex-Capt. Harish Uppal v Union of India
(2003) 2 SCC 45 · Supreme Court (Constitution Bench)

📖 STORY Lawyers across India frequently **went on strike and boycotted courts**, leaving undertrials in jail and litigants stranded. A retired army officer filed a petition against this.

⚖ HELD Lawyers have **no right to go on strike or call for a boycott**, not even a token strike. They may protest by **press statements, black arm bands, peaceful dharnas outside court** — but must not stop justice. An advocate who doesn't appear because of a strike may be **liable to his client**.

💡 REMEMBER **Courts must not stop because lawyers protest.**

Shiv Kumar v Hukam Chand
(1999) 7 SCC 467 · Supreme Court

📖 STORY In a criminal trial in a Sessions Court, the **complainant's private advocate** wanted to take over the prosecution, saying the public prosecutor was not aggressive enough.

⚖ HELD A private counsel may only **assist** under the Public Prosecutor's direction. The prosecutor must be **fair — not a persecutor**; his job is to bring out the truth, not win at any cost.

💡 REMEMBER **Prosecutor = minister of justice.**

R.D. Saxena v Balram Prasad Sharma
(2000) 7 SCC 264 · Supreme Court

📖 STORY An advocate who had been a bank's legal adviser **refused to return the case files** when the bank changed lawyers, claiming a **lien** until his fees were paid.

⚖ HELD An advocate has **no lien over a client's litigation files**; files are not 'goods'. He must return them and may **sue for his fees** separately.

💡 REMEMBER **Never hold files hostage.**

B. Sunitha v State of Telangana
(2018) 1 SCC 638 · Supreme Court

📖 STORY A widow who received motor-accident compensation was pressed by her advocate for a fee based on a **share of the compensation**. A cheque she gave bounced and he filed a cheque-bounce case.

⚖ HELD Case **quashed** — a fee claimed as a **percentage of the result** is forbidden by **r.20** and is not a legally enforceable debt. The Court also expressed concern about **exploitative legal fees**.

💡 REMEMBER **No share in the client's win.**

REAL-WORLD PICTURE

Adv. Ravi of Nampally Criminal Court is told by his client, in confidence, where the stolen gold is hidden. He **cannot reveal it** (r.17, S.132 BSA), but he also **cannot lie** to the court or let the client produce false evidence. He may still argue that the prosecution has not proved its case — that is his duty.

MEMORY TRICK

C-C-O-C-S: Court (respect), Client (loyalty), Opponent (fairness), Colleagues (courtesy), Society (service).

RANK 7 · UNIT I

7 Right to practise — a right or a privilege? (Art. 19(1)(g), practice of law, business and employment)

★★☆ asked in 5 of 10 papers · Part A ×6 · Part B ×1

📅 Part A: 2014 · 2017 · 2021 (×3) · 2022 — Part B: 2017 (regulation of practice)

Art. 19(1)(g) · Art. 19(6) · S.29 · S.30 · S.32 · S.33 · S.34 · S.45 · BCI rr.47–52

Your neighbour, a retired engineer who 'knows the law well', wants to argue his own friend's case in court. Can he?

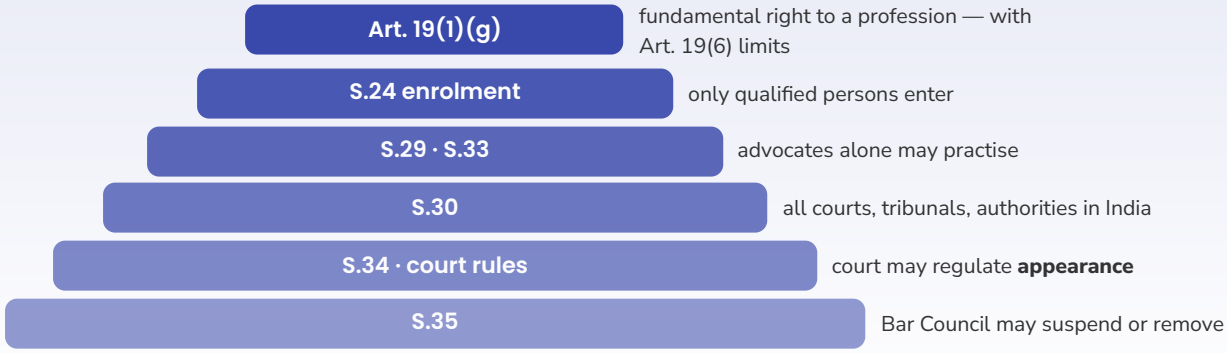
QUICK SCAN — THE WHOLE ANSWER IN FIVE LINES

1. **Constitution:** **Art. 19(1)(g)** — right to practise any **profession**, subject to **reasonable restrictions and qualifications** (Art. 19(6)).
2. **Statute:** only **advocates** can practise law (**S.29, S.33**); an enrolled advocate may practise in **all courts including the Supreme Court, tribunals and authorities** (**S.30**, in force from **2011**).
3. **Right or privilege?** A **statutory right** for those enrolled (**N.K. Bajpai, 2012**) — but conditional and regulated: courts may control **appearance** (**S.34; Pravin C. Shah, 2001**). So: **a right to practise, a privilege to appear**.
4. **Practice of law** = litigation **and** non-litigation — advice, drafting (**A.K. Balaji, 2018**). Illegal practice: up to **6 months' imprisonment** (**S.45**).
5. **Business or employment:** an advocate **cannot run a business or be a full-time salaried employee** while practising (**BCI rr.47–49**; **Haniraj Chulani**).

HOW IT HAS BEEN ASKED

- Right to practice (2014, 2022) · Practice of law (2017)
- Article 19(1)(g) (2021) · Right to practise — a privilege (2021)
- Legal profession in a business or industry (2021)
- Regulation governing enrolment and practice (2017 B)

From a fundamental right to a regulated privilege



Right to practise, privilege to appear

Advocate in business or industry

	Allowed	Not allowed (rr.47–52)
Business	Sleeping partner / non-executive director (if rules permit)	**Personally running a business** while practising
Employment	Law officer of Government / public prosecutor (still an advocate — **Sushma Suri, Deepak Agarwal**)	**Full-time salaried employee** of a company or person while practising
Other work	Teaching law, writing books, journalism, examining	Any occupation inconsistent with the profession

🏆 **Topper answer** 16-mark essay — every heading below; 6-mark note — see the green box

Introduction

Is practising law a **right** that every enrolled advocate can claim, or a **privilege** granted and controlled by courts and Bar Councils? The answer combines the **Constitution**, the **Advocates Act** and the **case law**.

Constitutional basis — Art. 19(1)(g)

Every citizen has the right **"to practise any profession, or to carry on any occupation, trade or business"**. But **Art. 19(6)** allows the State to prescribe **professional or technical qualifications** and reasonable restrictions. So the right to practise law is available only to those who **qualify** (law degree + enrolment).

Statutory basis — Advocates Act, 1961

- **S.29** — advocates are the **only recognised class** of persons entitled to practise law.
- **S.30** — every advocate on the State roll is entitled **as of right** to practise throughout India: in **all courts including the Supreme Court**, before any **tribunal** or person authorised to take evidence, and before any other **authority**. (S.30 was brought into force only in **2011**, after the Supreme Court's nudge in **Aeltemesh Rein v Union of India, 1988**.)
- **S.32** — a court may **permit any person** (not an advocate) to appear in a **particular case**.
- **S.33** — no person other than an advocate may practise in any court.
- **S.34** — High Courts may make **rules** on the conditions of practice.
- **S.45** — illegal practice: imprisonment up to **6 months**.

Right or privilege? — the answer

1. **A right** — for an enrolled advocate, the right to practise is a **statutory right** under S.30, protected by Art. 19(1)(g) (**N.K. Bajpai, 2012**).
2. **But not absolute** — it is subject to **qualifications** (S.24), **disqualifications** (S.24A), **discipline** (S.35), **BCI rules** (no business, no employment), and **court rules** on appearance.
3. **The right to appear** before a particular court is a matter the **court regulates** — it can bar an advocate guilty of contempt from appearing until he purges it (**Pravin C. Shah, 2001**).
4. **The privilege aspect** — the profession is an **honour**, held on condition of good conduct; misconduct can take it away.

Conclusion in one line: **It is a right to practise, but a privilege to continue and to appear** — earned by qualification, kept by conduct.

Practice of law — meaning

Practice of law is not only arguing in court. It covers **advising, drafting documents, conveyancing, negotiating** — **A.K. Balaji (2018)**. Foreign lawyers cannot practise Indian law; they may only 'fly in, fly out' to advise on foreign law.

Legal profession in a business or industry

- **r.47** — an advocate shall not **personally engage in any business**; he may be a sleeping partner where it does not conflict with the profession.
- **r.49** — shall not be a **full-time salaried employee** of any person, government, firm or company **while practising**; on taking such employment he must **inform the Bar Council** and **cease to practise** as long as it continues.
- **Exception** — **law officers of the Government** (public prosecutors, government pleaders) remain advocates — **Sushma Suri (1999)**, **Deepak Agarwal (2013)**.
- **In-house counsel** (legal managers in companies) give advice but cannot appear in court for the company as advocates while on full-time salary.
- Allowed side activities: **teaching law, writing books, journalism, examining** for universities.

Conclusion

★ The right to practise is **wide in space** (every court in India) but **narrow in licence** — only for the qualified, and only while they keep faith with the profession.

6 FOR A 6-MARK SHORT NOTE, WRITE

1. Art. 19(1)(g) + Art. 19(6)
2. S.29, S.30 (2011), S.33
3. Right or privilege — 3 points
4. One case: N.K. Bajpai or Pravin C. Shah

THE CASES — AS STORIES

N.K. Bajpai v Union of India

(2012) 4 SCC 653 · Supreme Court

STORY Rules barred **retired members of the Armed Forces Tribunal** from appearing as advocates before that Tribunal. A retired member challenged this as a breach of his right to practise.

HELD **Restriction upheld.** The right to practise is a **statutory right, subject to reasonable restrictions** — not an absolute fundamental right; the bar protects the **independence and fairness** of the Tribunal.

REMEMBER **Right to practise has limits.**

Pravin C. Shah v K.A. Mohd. Ali

(2001) 8 SCC 650 · Supreme Court

STORY A Kerala advocate was **convicted of contempt** for misbehaving in court. A High Court rule said an advocate convicted of contempt could not appear until he **purged** the contempt; he kept appearing.

HELD The rule is valid: the **right to appear in court is regulated by the court** itself; he cannot appear until he purges the contempt. Bar Councils regulate **practice**; courts regulate **appearance**.

REMEMBER **Practise as of right, appear by permission of conduct.**

Bar of Indian Lawyers v D.K. Gandhi

2024 · Supreme Court

STORY A client complained to a consumer forum against his advocate for 'deficient service'. The question: is an advocate a 'service provider' under the **Consumer Protection Act, 2019**?

HELD **No.** The legal profession is **sui generis** — unique, not a trade or business; the advocate works under the client's control, so advocates' services fall **outside the consumer law**. Clients can still sue in civil court or complain to the Bar Council.

REMEMBER **Law is a profession, not a business.**

REAL-WORLD PICTURE

Arjun works as a full-time **legal manager at an IT company** in HITEC City. While on salary he informs the Bar Council and stops practising. When he resigns to join a law firm, he can resume practice — and then appear in any court in India under **S.30**.

MEMORY TRICK

29-30-33-34-45: 29 only advocates · 30 everywhere · 33 others barred · 34 court rules · 45 jail for fakes.

RANK 8 · UNIT II

8 Seven lamps of advocacy and the elements of advocacy

★★☆ asked in 6 of 10 papers | Part A ×4 | Part B ×3

📅 Part A: 2013 · 2015 · 2016 · 2022 — Part B: 2014 · 2016 · 2021

Judge E.A. Parry, 1923 | BCI Rules Part VI Ch. II

> ? *What makes Nani Palkhivala, Bhulabhai Desai or Ram Jethmalani great — knowledge alone, or something more?*

⚡ QUICK SCAN — THE WHOLE ANSWER IN FIVE LINES

1. **Seven lamps** — from **Judge Edward Abbott Parry's book *The Seven Lamps of Advocacy* (1923)**.
2. **The lamps: Honesty · Courage · Industry · Wit · Eloquence · Judgment · Fellowship**.
3. **Memory line: "Honest Courage Is Wit, Eloquence, Judgment & Fellowship"** — same order.
4. **Elements of advocacy: knowledge of law · preparation · drafting · presentation · examination of witnesses · ethics · client handling · court manners**.
5. **Indian lamps in action: Bhulabhai Desai** (courage, INA trial 1945), **Nani Palkhivala** (industry, Kesavananda 1973), **Gandhiji** (honesty — 'unite parties riven asunder').

✍ HOW IT HAS BEEN ASKED

- Seven lamps of advocacy (2013, 2022 A; 2014, 2016 B)
- Elements of advocacy (2015, 2016)
- Essential elements of advocacy and Bench-Bar relations (2021 B)

The Seven Lamps — Judge E.A. Parry (1923)

1 Honesty Truthful to court and client; no false cases — the **first and brightest** lamp	**2 Courage** Fearless before powerful judges, governments and public opinion	**3 Industry** Hard work — reading the brief, the law, every document	**4 Wit** Quick, light humour that relieves tension without hurting
5 Eloquence Clear, persuasive speech — not noise, but sense	**6 Judgment** Knowing what to argue, what to drop, when to settle	**7 Fellowship** Brotherhood of the Bar; respect for colleagues and opponents	

Honest Courage Is Wit, Eloquence, Judgment & Fellowship

🏆 Topper answer

16-mark essay — every heading below; 6-mark note — see the green box

Introduction

Advocacy is the art of presenting a client's case persuasively before a court. In 1923, the English county court judge **Sir Edward Abbott Parry** wrote ***The Seven Lamps of Advocacy***, naming seven qualities that light the advocate's path. They remain the classic test of a good lawyer.

The seven lamps

1. **Honesty** — the foremost lamp. An advocate must be truthful to the court, the client and the opponent; never mislead the court, never fabricate. **Gandhiji** as a lawyer refused false cases and said **"the true function of a lawyer was to unite parties riven asunder"**.
2. **Courage** — to stand up to powerful opponents, hostile judges and public anger. **Bhulabhai Desai** defended the **INA officers** at the **Red Fort trial (1945)** against the British Government — a landmark of courage.

3. **Industry** — hard, thorough preparation. **Nani Palkhivala** prepared for months for **Kesavananda Bharati (1973)**, where the basic-structure doctrine was born.
4. **Wit** — quick humour and presence of mind that eases a tense courtroom and wins a point gracefully.
5. **Eloquence** — the power of clear, simple, persuasive speech; not loudness but logic.
6. **Judgment** — wisdom to choose the strongest points, foresee the opponent's, and advise a **settlement** when it serves the client.
7. **Fellowship** — brotherhood at the Bar: courtesy to opponents, guidance to juniors, respect to seniors; fight in court, friends outside.

Elements of advocacy (what makes a good advocate)

Element	What it means
Knowledge of law	Statutes, procedure, latest judgments
Preparation	Facts, documents, chronology, legal research
Drafting	Clear pleadings, notices, petitions
Presentation	Logical, brief, persuasive argument
Examination of witnesses	Chief, cross and re-examination skills
Ethics	Honesty, confidentiality, no misconduct
Client handling	Listening, advising honestly, managing expectations
Court manners	Dress, decorum, respect, punctuality

Link with the Code of Ethics

The BCI's **standards of professional conduct** turn these lamps into rules — honesty (no false evidence), courage (fearless defence, r.15), fellowship (duties to colleagues), judgment (no fomenting litigation, r.18).

Conclusion

★ The seven lamps are **character first, skill second**. Knowledge makes a lawyer; the lamps make an **advocate**.

6 FOR A 6-MARK SHORT NOTE, WRITE

1. Parry, 1923 — one line
2. List all 7 lamps with 1 line each
3. One Indian example (Bhulabhai / Palkhivala)
4. Conclusion — character over skill

THE CASES — AS STORIES

The INA Red Fort Trial

1945 · Court-martial, Red Fort, Delhi

STORY After World War II, the British put three officers of the **Indian National Army** — **Shah Nawaz Khan, Prem Sahgal and Gurbaksh Singh Dhillon** — on trial for 'waging war against the King'. **Bhulabhai Desai**, though ill, led the defence.

HELD He argued that the INA was the army of a **free government at war**, so its soldiers could not be tried as traitors. The officers were convicted but the sentences were **remitted** under public pressure — the trial **stirred the whole nation**.

REMEMBER **Lamp of courage.**

Kesavananda Bharati v State of Kerala

(1973) 4 SCC 225 · 13-judge bench

STORY A Kerala mutt head challenged land-reform laws and constitutional amendments. **Nani Palkhivala** argued for weeks before the largest bench in the Supreme Court's history, after months of preparation.

HELD The Court held Parliament can amend the Constitution but **cannot destroy its basic structure**.

REMEMBER **Lamp of industry (and eloquence).**

REAL-WORLD PICTURE

In a Hyderabad family court, a young advocate sees that a long contest will ruin both spouses. Using **judgment** and **honesty**, she advises mediation; the couple settle in two sittings. She has lit the lamp Gandhiji praised — **uniting parties riven asunder**.

MEMORY TRICK

Honest Courage Is Wit, Eloquence, Judgment & Fellowship — H-C-I-W-E-J-F, Parry 1923.

RANK 9 · UNIT I

9 Development of the legal profession in India — history, changes after Independence, a noble profession

★★☆ asked in 5 of 10 papers · Part A ×1 · Part B ×4

📅 Part A: 2013 (Indian Bar Councils Act) — Part B: 2013 · 2015 · 2018 · 2019

Charter 1726 · Regulating Act 1773 · Bengal Reg. VII 1793 · LP Acts 1846, 1879 · High Courts Act 1861 · Indian Bar Councils Act 1926 · Advocates Act 1961

In 1750 there was no 'lawyer' in an Indian court as we know it. How did we get from Mughal vakils to the Supreme Court Bar?

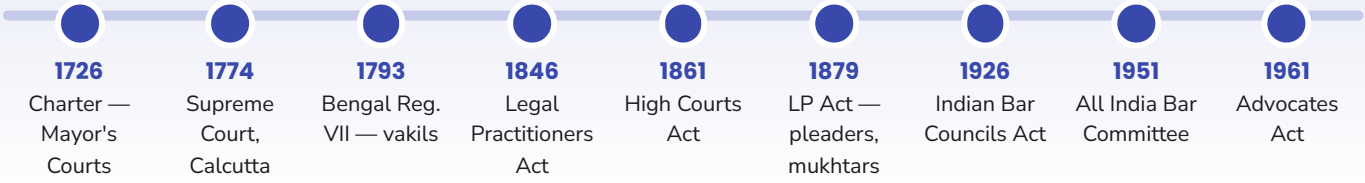
QUICK SCAN — THE WHOLE ANSWER IN FIVE LINES

1. **Ancient & medieval:** no organised profession; **vakils** acted as agents in Mughal times.
2. **British courts:** **1726 Mayor's Courts → 1774 Supreme Court, Calcutta → 1793 Bengal Regulation VII (first recognised Indian pleaders) → 1846 & 1879 Legal Practitioners Acts → 1861 High Courts Act**.
3. **Towards one Bar:** **Chamier Committee 1923 → Indian Bar Councils Act 1926 → All India Bar Committee 1951 (S.R. Das) → Advocates Act 1961**.
4. **After Independence:** unified Bar, Bar Councils, Art. 19(1)(g), legal aid (Art. 39A), 5-year law degrees & NLUs, AIBE, law firms, e-courts, Senior designation reform.
5. **Noble, not a trade:** **"law is not a trade, briefs no merchandise"** (**Dabholkar**); advocates are outside consumer law (**D.K. Gandhi, 2024**).

HOW IT HAS BEEN ASKED

- Discuss the development of legal profession in India (2013, 2018)
- Significant changes in the legal profession after Independence (2019)
- "Legal profession is a noble profession and not a trade or business" — comment (2015)
- Indian Bar Council(s) Act (2013 A)

300 years of the Indian Bar



🏆 Topper answer

16-mark essay — every heading below; 6-mark note — see the green box

Introduction

The Indian legal profession grew from **informal agents (vakils)** into a **unified, self-governing Bar** under the **Advocates Act, 1961**. Its story runs through four stages.

1. Ancient and medieval India

- In ancient India, disputes were decided by kings, assemblies and panchayats; there was **no organised class of lawyers**.
- Under the **Mughals**, **vakils** acted as agents of parties — but without any training or regulation.

2. Early British period

- **Charter of 1726** — **Mayor's Courts** at Madras, Bombay and Calcutta; no qualified legal practitioners.
- **Regulating Act, 1773** → **Supreme Court at Calcutta (1774)** — enrolled English **advocates and attorneys**; Indians excluded.

- **Bengal Regulation VII of 1793** — first **recognised profession of Indian pleaders (vakils)** in the Company's courts, enrolled by the Sadar Diwani Adalat.
- **Legal Practitioners Act, 1846** — opened the profession to persons of **any nationality or religion**.
- **Indian High Courts Act, 1861** — High Courts at **Calcutta, Bombay, Madras (1862)**; enrolment of advocates, vakils, attorneys.
- **Legal Practitioners Act, 1879** — **pleaders, mukhtars and revenue agents** regulated.

3. Towards a unified Bar

- **Indian Bar Committee (Chamier Committee), 1923** — recommended Bar Councils.
- **Indian Bar Councils Act, 1926** — Bar Councils for each High Court; but **enrolment and discipline stayed with the High Courts**, and many classes of lawyers continued.
- **All India Bar Committee, 1951 (chaired by S.R. Das)** — recommended a **single class of advocates** and an **All India Bar Council**; the **Law Commission's 14th Report (1958)** agreed.
- **Advocates Act, 1961** — **one class of 'advocates', State Bar Councils and the Bar Council of India, a common roll, discipline by Bar Councils**.

4. Significant changes after Independence

1. **Unified, autonomous Bar** — Advocates Act, 1961.
2. **Constitutional protection** — Art. 19(1)(g); right to counsel Art. 22(1); **legal aid** Art. 39A (1976) and the Legal Services Authorities Act, 1987.
3. **Legal education reform** — 5-year integrated LL.B., **National Law School (1987)** and NLUs; BCI Legal Education Rules.
4. **AIBE (2010)** — a test before the Certificate of Practice; upheld in 2023.
5. **S.30 in force (2011)** — practise in every court in India.
6. **Women and first-generation lawyers** entering in large numbers.
7. **Law firms, corporate practice, arbitration and ADR**; foreign firms regulated (**A.K. Balaji, 2018**).
8. **Technology** — e-filing, virtual hearings, e-courts.
9. **Welfare** — Advocates' Welfare Fund Act, 2001.
10. **Senior designation reform** — transparent points-based process (**Indira Jaising, 2017**).

Legal profession — a noble profession, not a trade

- A lawyer is an **officer of the court**; his first duty is to **justice**, not profit.
- He cannot **advertise** (r.36), charge a **share of the result** (r.20), or run a **business** (r.47).
- The cab-rank rule and **legal aid** make him a servant of society.
- **Dabholkar (1976)**: **"law is not a trade, briefs no merchandise"**; **D.K. Gandhi (2024)**: the profession is **sui generis** — advocates are not traders under the Consumer Protection Act.
- **Gandhiji, Motilal Nehru, Rajendra Prasad, Sardar Patel, Dr Ambedkar** — lawyers who led the freedom struggle and drafted the Constitution — show its nobility.

Conclusion

★ From Mughal vakils to a self-governing Bar of over a million advocates, the profession has kept one constant: it exists **to serve justice**, not commerce.

6 FOR A 6-MARK SHORT NOTE, WRITE

1. 4 stages in one line each
2. Key dates: 1793, 1879, 1926, 1951, 1961
3. Advocates Act — unified Bar
4. Conclusion

THE CASES — AS STORIES

All India Bar Committee
1951 · Government of India (Chairman: Justice S.R. Das)

STORY After Independence, India still had **many classes of lawyers** — advocates, vakils, pleaders, mukhtars, attorneys — with different rights in different courts, and High Courts controlling them.

HELD The Committee recommended **one class of advocates, an All India Bar Council and State Bar Councils, and a common roll**. The **Advocates Act, 1961** gave effect to it.

REMEMBER **Root of today's Bar.**

Bar of Indian Lawyers v D.K. Gandhi
2024 · Supreme Court

STORY A consumer forum had held an advocate liable for 'deficiency in service'. The Bar challenged whether lawyers are service providers like shops or airlines.

HELD The legal profession is **sui generis**; it demands skill, ethics and public duty — so it is **not a trade or business**, and advocates are outside the Consumer Protection Act, 2019.

REMEMBER **Noble profession, judicially confirmed.**

REAL-WORLD PICTURE

Osmania's own alumni show the arc: from vakils in the Nizam's courts to today's advocates practising in the **Telangana High Court** under the Advocates Act, with e-filing, virtual hearings and a statewide Bar Council.

MEMORY TRICK

1726-1774-1793-1846-1861-1879-1926-1951-1961 — Mayor → Supreme → Vakils → Open → High Courts → Pleaders → Councils → Das → Advocates.

RANK 10 · UNIT I

10 Salient features of the Advocates Act, 1961

★★☆ asked in 2 of 10 papers | Part B ×2

📅 Part B: 2016 · 2021

S.2 | S.3–15 | S.16–28 | S.29–34 | S.35–44 | S.45 | S.49 | S.50

> ? *One Act replaced 150 years of patchwork rules. What did it change in one stroke?*

⚡ QUICK SCAN — THE WHOLE ANSWER IN FIVE LINES

1. **Objective:** **amend and consolidate the law on legal practitioners; create Bar Councils and an All-India Bar**.
2. **Unified Bar:** one class — **advocates** (S.29); two grades — **senior and other** (S.16).
3. **Self-government:** **State Bar Councils + BCI** (S.3–7), committees (S.9–10), rules (S.15, 28, 49).
4. **Entry & practice:** qualifications (**S.24**), disqualifications (**S.24A**), right to practise everywhere (**S.30**), pre-audience (**S.23**).
5. **Discipline:** Bar Councils, not courts (**S.35–38**); illegal practice punishable (**S.45**); repeal of old laws (**S.50**).

✍ HOW IT HAS BEEN ASKED

- Explain the salient features of the Advocates Act, 1961 (2016, 2021)

The Advocates Act at a glance

Chapter	Sections	What it covers
I	1–2	Short title, definitions — 'advocate' S.2(1)(a)
II	3–15	Bar Councils — SBC, BCI, functions, committees, rules
III	16–28	Admission & enrolment — senior advocates, rolls, S.24, S.24A, certificates
IV	29–34	Right to practise — S.29, S.30, S.33, court rules
V	35–44	Conduct of advocates — misconduct, DCs, appeals, review
VI–VII	45–60	Penalty, rule-making (S.49), repeal (S.50), transitional provisions

🏆 Topper answer

16-mark essay — every heading below; 6-mark note — see the green box

Introduction

The **Advocates Act, 1961** (Act 25 of 1961) was passed on the recommendations of the **All India Bar Committee (1951)** and the **Law Commission (14th Report, 1958)**. It **amends and consolidates the law relating to legal practitioners and provides for Bar Councils and an All-India Bar**.

Salient features

1. **Unified Bar** — all earlier classes (vakils, pleaders, mukhtars, attorneys) merged into **one class: advocates** (S.29).
2. **Two grades** — **senior advocates** and **other advocates** (S.16); seniors designated by the SC/HC for ability and standing, subject to BCI restrictions.
3. **Autonomous Bar Councils** — **State Bar Councils** (S.3) and the **Bar Council of India** (S.4) as bodies corporate (S.5).
4. **Functions** of SBCs (S.6) and BCI (S.7) — enrolment, standards of conduct, discipline, legal education, legal aid, welfare.
5. **Committees** — disciplinary (S.9), legal aid (S.9A), executive, enrolment and legal education (S.10).
6. **State rolls and a common roll** (S.17–20); **right of pre-audience** — Attorney-General first (S.23).
7. **Uniform qualifications** for enrolment (S.24) and **disqualifications** (S.24A).

8. **Right to practise throughout India** in all courts, tribunals and authorities (S.30).
9. **Advocates alone** may practise (S.33); High Courts may regulate conditions of practice (S.34).
10. **Discipline by the profession** — Disciplinary Committees (S.35–36), appeals to BCI and Supreme Court (S.37–38), civil-court powers (S.42), review (S.44).
11. **Penalty** — illegal practice punishable with imprisonment up to **6 months** (S.45).
12. **Rule-making** — Bar Councils (S.15, 28, 49), High Courts (S.34), Central Government (S.49A).
13. **Repeal** — the **Indian Bar Councils Act, 1926** and relevant parts of the **Legal Practitioners Act, 1879** and other laws (S.50).

Importance

- Ended the **fragmentation** of the Bar.
- Gave lawyers **self-government** and **independence** from the executive and judiciary in matters of discipline.
- Created an **all-India** profession — enrol once, practise anywhere.

Conclusion

★ The Advocates Act is the **constitution of the Bar**: one profession, self-governed, open to the qualified, accountable to its own councils and finally to the Supreme Court.

6 FOR A 6-MARK SHORT NOTE, WRITE

1. Object + 1951 Committee
2. 6 features with sections
3. Conclusion — constitution of the Bar

THE CASES — AS STORIES

Indira Jaising v Supreme Court of India

(2017) 9 SCC 766 · Supreme Court

STORY Senior advocate **Indira Jaising** challenged the opaque way judges designated 'senior advocates' under **S.16**, often by secret vote.

HELD The Court laid down **a transparent, points-based system** — a **Permanent Committee** headed by the Chief Justice assesses years of practice, judgments, publications and an interview; the full court then decides.

REMEMBER **S.16 now runs on merit points.**

REAL-WORLD PICTURE

A Telangana advocate enrolled in Hyderabad files a writ in the **Supreme Court**, argues before the **NCLT in Hyderabad** and appears in the **Bombay High Court** the next week — all on one enrolment, thanks to **S.30**.

MEMORY TRICK

Chapters: **P-B-A-R-C-M** — Preliminary, Bar Councils, Admission, Right to practise, Conduct, Miscellaneous.

RANK 11 · UNIT II

11 Legal aid — the advocate's duty to the poor

★★☆ asked in 5 of 10 papers · Part A ×5

📅 Part A: 2015 · 2018 · 2019 · 2020 · 2021

Art. 39A · Art. 21 · Art. 22(1) · LSA Act 1987 S.12 · S.9A Advocates Act · BCI r.46

? *A daily-wage labourer in Adilabad is arrested and has no money for a lawyer. Does the Constitution leave him alone?*

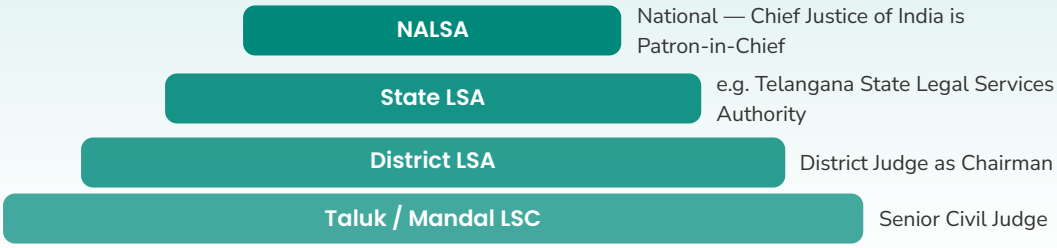
⚡ QUICK SCAN — THE WHOLE ANSWER IN FIVE LINES

1. **Legal aid** = **free legal services to those who cannot afford them** — advice, drafting, representation.
2. **Constitution: Art. 39A** (42nd Amendment, 1976) — equal justice and free legal aid; read into **Art. 21** (**Hussainara Khatoon, M.H. Hoskot**).
3. **Law: Legal Services Authorities Act, 1987** — NALSA → State LSA → District LSA → Taluk committees; **S.12** lists who is entitled; **Lok Adalats** (award = decree).
4. **Advocate's duty: BCI r.46** — anyone genuinely in need is entitled to legal help; give free aid to the indigent and oppressed. Bar Councils run **legal aid committees (S.9A)**.
5. **No lawyer = unfair trial:** conviction set aside where the accused was not offered legal aid (**Suk Das, 1986**).

✍ HOW IT HAS BEEN ASKED

- Legal aid (2015, 2018, 2020, 2021)
- Advocate's duty towards legal aid to the poor (2019)

Legal services ladder — LSA Act, 1987



Who gets free legal aid — S.12, LSA Act

1. **SC / ST**
2. **Victim of trafficking / begar**
3. **Women & children**
4. **Persons with disability**
5. **Disaster, caste atrocity, ethnic violence victims**
6. **Industrial workmen**
7. **Persons in custody** — jail, juvenile or protective home, psychiatric hospital
8. **Low income** — below the limit fixed by the State

🏆 Topper answer

16-mark essay — every heading below; 6-mark note — see the green box

Introduction

Justice that only the rich can buy is no justice. **Legal aid** means **free legal services — advice, drafting and court representation — to persons who cannot afford a lawyer**. It turns the promise of **equality before law** (Art. 14) into reality.

Constitutional basis

- **Art. 39A** (inserted by the **42nd Amendment, 1976**) — the State shall ensure equal justice and provide **free legal aid** so that no citizen is denied justice for economic or other disabilities.
- **Art. 21** — a fair, just and reasonable procedure includes **free legal aid** to a poor accused (**M.H. Hoskot, Hussainara Khatoon**).
- **Art. 22(1)** — right to consult and be defended by a lawyer of one's choice.

Legal Services Authorities Act, 1987

- Structure: **NALSA** (national) → **State LSA** → **District LSA** → **Taluk Legal Services Committee**.
- **S.12** — entitled persons: SC/ST members, victims of trafficking or begar, **women and children**, persons with disability, victims of mass disasters, caste atrocities or ethnic violence, **industrial workmen**, **persons in custody**, and persons with income below the prescribed limit.
- **Lok Adalats (S.19–22)** — settle disputes by compromise; the award is a **decree**, final, with **no appeal**, and court fee is refunded.

Role and duty of advocates

1. **BCI Rule 46** — **every advocate shall bear in mind that anyone genuinely in need of a lawyer is entitled to legal assistance even though he cannot pay for it fully or adequately**; within his means, he shall give **free legal assistance to the indigent and oppressed**.
2. **Bar Councils** — must organise legal aid (**S.6(1)(eee), S.7(1)(ib)**) through **legal aid committees** (**S.9A**, 5–9 members).
3. **Panel lawyers** of legal services authorities; **remand advocates**; **legal aid clinics** in law colleges; **para-legal volunteers**.
4. **Lok Adalats and mediation** — advocates help settle cases quickly and cheaply.
5. **Duty of quality** — a legal aid client deserves the **same effort** as a paying client.

Conclusion

★ Legal aid is not charity — it is a **constitutional right of the poor** and a **professional duty of every advocate**.

6 FOR A 6-MARK SHORT NOTE, WRITE

1. Meaning
2. Art. 39A + Art. 21
3. LSA Act — structure + S.12 (any 4)
4. BCI r.46 — advocate's duty
5. One case: Hussainara Khatoon

⚖ THE CASES — AS STORIES

Hussainara Khatoon v State of Bihar
(1980) 1 SCC 81 and connected orders · Supreme Court

📖 STORY A newspaper reported that **thousands of undertrial prisoners** in Bihar jails had been waiting for trial for years — some for **longer than the maximum sentence** for their offence — because they were too poor to get bail or a lawyer.

⚖ HELD **Speedy trial and free legal aid are part of Art. 21.** The Court ordered the release of undertrials held beyond the maximum term and directed the State to provide **free lawyers** to poor accused.

💡 REMEMBER **Birth of the legal aid movement in courts.**

Suk Das v Union Territory of Arunachal Pradesh
(1986) 2 SCC 401 · Supreme Court

📖 STORY Suk Das and others were tried and convicted **without a lawyer**. They had not asked for one, as they did not know they could.

⚖ HELD The trial was **vitiated**: the State must **inform the accused of the right to free legal aid**; failure to provide it — even without a request — violates **Art. 21**. Conviction set aside.

💡 REMEMBER **No lawyer, no fair trial.**

M.H. Hoskot v State of Maharashtra
(1978) 3 SCC 544 · Supreme Court

📖 **STORY** A prisoner could not file his appeal in time — he did not receive a copy of the judgment and had no lawyer.

⚖ **HELD** A prisoner has the **right to a copy of the judgment in time** and to **free legal services** for his appeal if he cannot afford a lawyer — part of **Art. 21**.

💡 **REMEMBER** **Right to appeal includes right to a lawyer.**

REAL-WORLD PICTURE

A woman in Nalgonda deserted by her husband walks into the **District Legal Services Authority**. She qualifies under **S.12** (woman), gets a **panel advocate free of cost**, files a maintenance case, and settles it in the next **Lok Adalat** — with no court fee.

MEMORY TRICK

39A + 21 + 1987 + r.46 — Constitution, life, the Act, the advocate.

12

RANK 12 · UNIT I

Solicitors firm (law firms)

★★☆ asked in 5 of 10 papers | Part A ×5

📅 Part A: 2014 · 2015 · 2018 · 2019 · 2022

BCI Rules Part VI | r.36 | A.K. Balaji (2018)

In London, the lawyer you meet is not the lawyer who argues. Why — and does India work the same way?

⚡ QUICK SCAN — THE WHOLE ANSWER IN FIVE LINES

1. **Solicitor** = a lawyer who **advises clients, drafts documents and prepares cases**, and briefs a **barrister** who argues in court (English dual system).
2. **India:** a **single class of advocates** (S.29) — but the **Bombay and Calcutta High Courts** kept an **attorney (solicitor) system** on their Original Side; from it grew India's **solicitor firms**.
3. **Today's law firm** = a **partnership of advocates** (some as LLPs): corporate, banking, M&A, IP, litigation support.
4. **Rules:** only **advocates** can be partners; **no advertising or touting (r.36)** beyond a basic website; no fee-sharing with non-lawyers; no conflict of interest.
5. **Foreign firms** cannot practise Indian law (**A.K. Balaji, 2018**); BCI now permits limited **reciprocal** practice in foreign and international law.

✍ HOW IT HAS BEEN ASKED

- Solicitors firm / firms (2014, 2015, 2018, 2019, 2022)

Solicitor v Barrister

	Solicitor	Barrister / Advocate (court)
Main work	Client meetings, advice, drafting, documents, transactions	Arguing in court, appeals, opinions
Client contact	Direct	Usually through a solicitor (England)
Organisation	Firms and partnerships	Chambers; individual practice
India	Law firms; attorneys of Bombay & Calcutta HCs	Advocates — one class under the Advocates Act

🏆 Topper answer

16-mark essay — every heading below; 6-mark note — see the green box

Introduction

In **England**, the legal profession has **two branches**: **solicitors**, who deal directly with clients, advise and draft, and **barristers**, who argue in court on a solicitor's instructions. A **solicitors firm** is a partnership of solicitors.

Solicitors in India

- The **Advocates Act, 1961** created **one class — advocates** (S.29).
- But the **High Courts of Bombay and Calcutta** retained the **attorney (solicitor) tradition** on their **Original Side**: attorneys took instructions from clients and briefed counsel.
- Historic solicitor firms grew in **Bombay and Calcutta** — e.g. **Crawford Bayley & Co.** and **Amarchand & Mangaldas** (founded 1917) — the ancestors of today's big Indian law firms.

Law firms today

- A **partnership of advocates** (some registered as **LLPs**) offering corporate, banking, M&A, capital markets, IP, tax, arbitration and litigation support.

- **Advantages:** specialisation, teamwork, continuity when a lawyer leaves, research and infrastructure, ability to handle large transactions.
- **Concerns:** commercialisation, long hours, conflicts of interest.

Regulation — rules every law firm must follow

1. **Only advocates** can be partners; **no sharing of fees** with non-advocates.
2. **No advertising or soliciting** (**r.36**); only a simple website with names, contact details, enrolment and areas of practice.
3. **Conflict of interest** — the firm cannot act for both sides; a partner's knowledge binds the firm (r.33).
4. **Client money** — accounts as per rules 25–30.
5. **Foreign law firms** — cannot practise Indian law; may 'fly in and fly out' to advise on foreign law on a casual basis (**A.K. Balaji, 2018**). In 2023 the BCI framed rules allowing **foreign lawyers and firms to register** for **non-litigious** foreign-law and international work on **reciprocity**.

Conclusion

★ The solicitor tradition lives on in India's **law firms** — modern, specialised and big, but bound by the **same ethics** as any advocate.

6 FOR A 6-MARK SHORT NOTE, WRITE

1. English dual system — one line
2. India: one class, but Bombay/Calcutta attorneys
3. Law firm today — 3 features
4. Rules: partners, r.36, conflict, foreign firms (A.K. Balaji)

THE CASES — AS STORIES

Bar Council of India v A.K. Balaji
(2018) 5 SCC 379 · Supreme Court

STORY Foreign law firms argued that advising on transactions in India was not 'practice of law', so the Advocates Act did not stop them. Indian lawyers disagreed.

HELD Practice of law includes **non-litigation work**; foreign firms **cannot practise in India**, but may visit **temporarily** to advise on **foreign law**; BPO/KPO legal-support services are not practice of law.

REMEMBER **Indian law work = Indian advocates.**

Lawyers Collective v Bar Council of India
2009 · Bombay High Court

STORY Some foreign law firms opened **liaison offices** in Mumbai with RBI permission and offered legal services.

HELD Their activity amounted to **practice of law**; they could not do it without enrolling under the Advocates Act. (Approved in substance by the Supreme Court in **A.K. Balaji**.)

REMEMBER **RBI permission is not a licence to practise.**

REAL-WORLD PICTURE

When a Hyderabad pharma company buys a European start-up, an Indian **law firm** does the due diligence, drafts the share-purchase agreement and coordinates with a foreign firm advising on that country's law — each staying within its own legal system.

MEMORY TRICK

One class in India, two branches in England — firms of advocates, no ads, no non-lawyer partners, no foreign practice.

13

RANK 13 · UNIT IV

Bar–Bench relations

★★☆ asked in 5 of 10 papers · Part A ×4 · Part B ×1

📅 Part A: 2015 · 2017 · 2018 · 2019 — Part B: 2021 (with elements of advocacy)

BCI Rules — duty to court · Restatement of Values of Judicial Life, 1997 · Contempt of Courts Act, 1971

Judges are chosen from the Bar, and lawyers argue before them every day. Why do they still clash — and who loses when they do?

QUICK SCAN — THE WHOLE ANSWER IN FIVE LINES

1. **Bar** = advocates; **Bench** = judges. They are **two wheels of the chariot of justice** — one cannot move without the other.
2. **Bar owes the Bench:** respect, candour, preparation, punctuality, **no strikes**, no insults or threats.
3. **Bench owes the Bar:** patience, courtesy, **fair hearing**, no harsh or humiliating remarks, timely decisions (**Restatement of Values of Judicial Life, 1997**).
4. **When it breaks:** contempt and misconduct — **V.C. Mishra (1995)**, **Mahipal Singh Rana (2016)**; strikes — **Harish Uppal (2003)**.
5. **How to improve:** **Bar–Bench committees, regular meetings, grievance cells, training, mutual respect**.

HOW IT HAS BEEN ASKED

- Bar-Bench relations (2015, 2017, 2018, 2019)
- Essential elements of advocacy and Bench-Bar relations (2021 B)

Two-way street

	Bar → Bench (advocates' duties)	Bench → Bar (judges' duties)
Respect	Dignified conduct; no insinuations against judges	Courtesy; no humiliating remarks against advocates
Time	Be prepared and punctual; avoid needless adjournments	Sit on time; hear patiently; decide promptly
Truth	Never mislead the court; cite adverse law	Give reasons; be impartial and open
Protest	No strikes or boycotts (Harish Uppal)	Use contempt power sparingly, as a last resort

Two wheels of one chariot

🏆 Topper answer

16-mark essay — every heading below; 6-mark note — see the green box

Introduction

The **Bar** (advocates) and the **Bench** (judges) together administer justice. Judges are mostly drawn **from the Bar**; advocates are **officers of the court**. Their relationship should be one of **mutual respect, co-operation and independence** — often described as **two wheels of the chariot of justice**.

Duties of the Bar towards the Bench

1. **Respect and courtesy** to the court; dignity in dress and conduct.
2. **Candour** — never mislead the court on facts or law.
3. **Preparation and punctuality**; avoid seeking needless adjournments.
4. **No private communication** with a judge about a pending case.
5. **No strikes or boycotts** (Harish Uppal); grievances through proper channels.
6. **Fair criticism** of judgments is allowed; **scandalising** judges is contempt.

Duties of the Bench towards the Bar

1. **Patience and courtesy** — hear counsel fully.
2. **No harsh or humiliating remarks** on advocates in open court or in judgments.
3. **Punctuality**, timely judgments, consistency.
4. **Impartiality** — no favouritism to any lawyer; the **Restatement of Values of Judicial Life (1997)** asks judges to keep aloof from lawyers appearing before them.
5. Use the **contempt** power with restraint.

Causes of friction

Heavy pendency and adjournments, strikes, harsh remarks, delays in judgments, perceived bias, aggressive behaviour in court.

Measures to improve relations

- **Bar–Bench liaison committees** and regular meetings.
- **Grievance redressal** mechanisms in every court complex.
- **Continuing legal education** and joint seminars.
- **Bar Councils acting firmly** on misconduct, and **courts acting fairly** on complaints against judges.

Conclusion

★ When Bar and Bench respect each other, **litigants win**; when they fight, **justice is the first casualty**.

6 FOR A 6-MARK SHORT NOTE, WRITE

1. Meaning — two wheels
2. Bar's duties — 4
3. Bench's duties — 4
4. One case: V.C. Mishra / Harish Uppal
5. Measures — 2

THE CASES — AS STORIES

In re: Vinay Chandra Mishra
(1995) 2 SCC 584 · Supreme Court

📖 STORY A senior advocate **shouted at and threatened** an Allahabad High Court judge in open court when the judge asked him a question.

⚖ HELD Criminal contempt. The Court stressed that the Bar must **respect the dignity of the court**; insulting a judge undermines justice itself.

💡 REMEMBER **Insult the Bench, injure justice.**

In re: Prashant Bhushan
2020 · Supreme Court

📖 STORY Senior advocate Prashant Bhushan posted two **tweets** criticising the Chief Justice and the Supreme Court's functioning.

⚖ HELD Held guilty of **criminal contempt**; he refused to apologise and was **fined ₹1**, which he paid under protest. The case sparked a national debate on **fair criticism v scandalising the court**.

💡 REMEMBER **Criticise judgments, not the judges' integrity.**

REAL-WORLD PICTURE

At a district court in Telangana, lawyers plan a boycott over a judge's remarks. Instead, the **Bar Association** raises it at the monthly **Bar–Bench meeting** chaired by the Principal District Judge; the issue is resolved and the courts keep working — exactly what Harish Uppal requires.

MEMORY TRICK

R-T-T-P: Respect, Time, Truth, Protest — both sides owe all four.

RANK 14 · UNIT I

14 Short-note corner — Senior Advocates, AIBE, legal education, Advocates' Welfare Fund, Indian Bar Councils Act

★☆☆ asked in 3 of 10 papers · Part A ×5

📅 Part A: 2013 (Indian Bar Council Act) · 2014 (Legal education, Advocates Welfare Fund, Bar Council Code of Ethics) · 2021 (Restrictions on Senior Advocate) — AIBE: in the syllabus, never asked

S.16 · S.7(1)(h),(i) · S.10(2)(b) · Advocates' Welfare Fund Act, 2001 · Indian Bar Councils Act, 1926

Five small topics, five easy marks each — if you know three lines and one case for each.

⚡ QUICK SCAN — THE WHOLE ANSWER IN FIVE LINES

1. **Senior Advocate (S.16):** designated by SC/HC for **ability, standing at the Bar or special knowledge**; cannot **file vakalat**, **draft pleadings**, or **appear without a junior / AOR**.
2. **AIBE:** BCI exam since **2010** for the **Certificate of Practice**; open-book; upheld in **Bonnie FOI (2023)**.
3. **Legal education:** BCI's function (**S.7(1)(h), (i)**) through its **Legal Education Committee** (**S.10(2)(b)**); 3-year and 5-year LL.B.; NLUs since **1987**.
4. **Advocates' Welfare Fund:** central **Act of 2001** + State laws; **welfare stamps on vakalatnamas**; benefits on retirement or death.
5. **Indian Bar Councils Act, 1926:** first Bar Councils (one per High Court) — but **enrolment and discipline stayed with High Courts**; repealed by the Advocates Act.

✍ HOW IT HAS BEEN ASKED

- Restrictions on Senior Advocate (2021)
- Legal education (2014)
- Advocates Welfare Fund (2014)
- Indian Bar Council Act (2013)
- All India Bar Examination — in the syllabus (Unit I), not yet asked

🏆 Topper answer

16-mark essay — every heading below; 6-mark note — see the green box

A. Restrictions on Senior Advocates — S.16

Designation: an advocate may, **with his consent**, be designated a **senior advocate** by the **Supreme Court or a High Court** if, by his **ability, standing at the Bar or special knowledge or experience in law**, he deserves it (S.16(2)). The process was made transparent by **Indira Jaising v Supreme Court (2017)**; in **2025** (**Jitender @ Kalla v State of NCT of Delhi**) the Supreme Court revisited it and asked High Courts to frame fresh rules, moving away from the points-and-interview method.

Restrictions (S.16(3); BCI Rules, Part VI, Chapter I):

1. Shall **not file a vakalatnama** or act in any court or tribunal.
2. Shall **not appear without an advocate-on-record** in the Supreme Court, or without a **junior** in other courts.
3. Shall **not accept instructions to draft pleadings or affidavits, advise on evidence** or do similar drafting work — but may **settle** such matters with a junior.
4. Shall **not accept a brief directly from a client**; only through an advocate.

Why: seniors are the **'leaders' of the Bar** — the restrictions keep work flowing to juniors and preserve the dignity of the designation.

B. All India Bar Examination (AIBE)

- Introduced by the **BCI in 2010** (first exam 2011) under its power to lay down **standards and conditions of practice** (S.7, S.49).
- A newly enrolled advocate must pass it to get the **Certificate of Practice**; it is an **open-book** test on substantive and procedural law.

- **Bar Council of India v Bonnie FOI Law College (2023)**, Constitution Bench — AIBE is **valid**; the BCI may even hold it **before enrolment**.
- **Purpose:** ensure **minimum competence**, raise standards, protect clients.

C. Legal education

- **BCI functions:** promote legal education and lay down standards in consultation with universities (**S.7(1)(h)**); **recognise universities** and inspect them (**S.7(1)(i)**).
- **Legal Education Committee** — 10 members: 5 from BCI + 5 co-opted (**S.10(2)(b)**); **Legal Education Rules, 2008**.
- Two routes: **3-year LL.B.** after graduation and **5-year integrated** degree; **National Law School of India University (1987)** began the NLU model.
- Emphasis on **clinical courses** — this very paper (with its **record of 50 Bar Council DC opinions and 10 Supreme Court judgments** and **viva**) is one of them; moot courts and internships.

D. Advocates' Welfare Fund

- **Advocates' Welfare Fund Act, 2001** (central) — applies where a State has no law of its own; several States, including Telangana and Andhra Pradesh, run their own schemes.
- Funds come from **welfare stamps** affixed on every **vakalatnama**, contributions of advocates, Bar Council grants and Government grants.
- **Benefits:** a lump sum on **cessation of practice** (retirement) and to the **family on death**; help in illness or disability.
- **S.6(2)** of the Advocates Act also lets SBCs run **welfare schemes** for indigent and disabled advocates.

E. Indian Bar Councils Act, 1926

- Passed on the **Chamier Committee (1923)** report.
- Created a **Bar Council for each High Court** — with the Advocate-General, members nominated by the High Court and members elected by advocates.
- **Limits:** enrolment and **discipline remained with the High Courts**; it covered only **advocates**, leaving vakils, pleaders and mukhtars outside — so the Bar stayed divided.
- **Repealed** by the **Advocates Act, 1961** (S.50).

F. Bar Council Code of Ethics (2014)

See **Topic 6** — the **BCI Rules, Part VI, Chapter II** (standards of professional conduct and etiquette) framed under **S.49(1)(c)**: duties to court, client, opponent, colleagues, legal aid, and restrictions on other employment.

6 FOR A 6-MARK SHORT NOTE, WRITE

1. Each item: definition + 3 points + one case or date

THE CASES — AS STORIES

Indira Jaising v Supreme Court of India
(2017) 9 SCC 766 · Supreme Court

STORY Senior designation was decided by secret ballot of judges with no stated criteria.

HELD A **Permanent Committee** and a **transparent, criteria-based** process were laid down (practice, judgments, publications, interview); later refined in 2023 and revisited in 2025.

REMEMBER **Merit, not ballot, for seniority.**

Bar Council of India v Bonnie FOI Law College
2023 · Supreme Court (Constitution Bench)

STORY The AIBE was challenged as beyond the BCI's powers.

HELD **Valid** — the BCI can prescribe a qualifying exam as a condition of practice, even before enrolment.

REMEMBER **AIBE stands.**

REAL-WORLD PICTURE

Every vakalatnama filed in Telangana courts carries a small **welfare stamp** — that money builds the fund that pays an elderly advocate when he retires, or his family if he dies in harness.

MEMORY TRICK

S-A-L-W-I: Senior, AIBE, Legal education, Welfare fund, Indian Bar Councils Act.

Numbers and dates to remember

Write one of these in every answer — examiners notice exact figures

DC members	3 — 2 elected + 1 co-opted (S.9)	**Appeal to BCI**	60 days (S.37)	**Appeal to SC**	60 days (S.38)
Decide complaint	1 year, else to BCI (S.36B)	**Review by DC**	60 days (S.44)	**Orders S.35(3)**	4 — dismiss, reprimand, suspend, remove
Enrolment age	21 years (S.24)	**Enrolment fee**	₹750 (₹600 + ₹150); SC/ST ₹125	**S.24A bar**	2 years after release / dismissal
Illegal practice	up to 6 months (S.45)	**SBC members**	15 / 20 / 25 by electorate	**SBC term**	5 years (S.8)
Executive committee	SBC 5 · BCI 9	**Enrolment committee**	3 (S.10(1)(b))	**Legal Education Cttee**	10 = 5 + 5 co-opted
Legal Aid Cttee	5 to 9 (S.9A)	**S.30 in force**	2011	**Advocates Act**	1961 (Act 25 of 1961)
Indian Bar Councils Act	1926	**All India Bar Committee**	1951 — S.R. Das	**Seven lamps**	Parry, 1923 — 7
Art. 39A	42nd Amendment, 1976	**LSA Act**	1987	**Tax audit**	receipts > ₹50 lakh (S.44AB)
AIBE	since 2010; upheld 2023	**BCI accounts rules**	rr.25–30 (+31, 32 loans)	**Welfare Fund Act**	2001

How to write for full marks

1 · Define
Quote the section or a standard definition in the first two lines.

2 · Structure
Numbered headings — examiners scan for them.

3 · Authority
One case with its year in every short note; two or three in an essay.

4 · Close
A one-line conclusion that answers the question asked.

Spoorthi Oum

With the blessings of our Guruji Sri Sri Sri Guru Viswa Spoorthi — wishing every reader clarity, confidence and success.

Prepared from 10 Osmania University papers (2013–2022) · lawsticker-ai.com · Priorities are as per previous year question paper analysis, not a prediction.